

SOLICITATION, OFFER AND AWARD			1. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 7900)		RATING DO-C3		PAGE 1 OF 68 PAGES		
2. CONTRACT NUMBER		3. SOLICITATION NUMBER N6247025R0020		4. TYPE OF SOLICITATION ☐ SEALED BID (IFB) ☒ NEGOTIATED (RFP)		5. DATE ISSUED 9/8/2025		6. REQUISITION/PURCHASE NUMBER	
7. ISSUED BY NAVFACSYSCOM ATLANTIC 6506 HAMPTON BLVD NORFOLK VA 23508-1278 NORFOLK, VA 23508-1278 United States				CODE N62470		8. ADDRESS OFFER TO (If other than item 7)			

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder".

SOLICITATION					
9. Sealed offers in original and 1 copies for furnishings the supplies or services in the Schedule will be received at the place specified in item 8, or if hand carried, in the depository located in until 2:00 PM EDT local time 11/14/2025 (Hour) (Date)					
CAUTION - LATE Submissions, Modifications, and Withdrawals: See Section L, Provision No. 52.214-7 or 52.215-1. All offers are subject to all terms and conditions contained in this solicitation.					
10. FOR INFORMATION CALL:		A. NAME STAR HANCHEY	B. TELEPHONE (NO COLLECT CALLS) AREA CODE 757 NUMBER 3224682 EXTENSION		C. E-MAIL ADDRESS star.m.hanchey.civ@us.navy.mil

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OFFER (Must be fully completed by offeror)

NOTE: Item 12 does not apply if the solicitation includes the provisions at 52.214-16, Minimum Bid Acceptance Period.

12. In compliance with the above, the undersigned agrees, if this offer is accepted within calendar days (60 calendar days unless a different period is inserted by the offeror) from the date for receipt of offers specified above, to furnish any or all items upon which prices are offered at the set opposite each item, delivered at the designated point(s), within the time specified in the schedule.

13. DISCOUNT FOR PROMPT PAYMENT (See Section I, Clause No. 52.232-8)		10 CALENDAR DAYS (%)	20 CALENDAR DAYS (%)	30 CALENDAR DAYS (%)	CALENDAR DAYS(%)
14. ACKNOWLEDGMENT OF AMENDMENTS (The offeror acknowledges receipt of amendments to the SOLICITATION for offerors and related documents numbered and dated):		AMENDMENT NO.	DATE	AMENDMENT NO.	DATE
15A. NAME AND ADDRESS OF OFFER-OR		CODE	FACILITY	16. NAME AND THE TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print)	
15B. TELEPHONE NUMBER AREA CODE NUMBER EXTENSION		☐ 15C. CHECK IF REMITTANCE ADDRESS IS DIFFERENT FROM ABOVE - ENTER SUCH ADDRESS IN SCHEDULE.		17. SIGNATURE	18. OFFER DATE

AWARD (To be completed by Government)				
19. ACCEPTED AS TO ITEMS NUMBERED		20. AMOUNT	21. ACCOUNTING AND APPROPRIATION	
22. AUTHORITY FOR USING OTHER THAN FULL OPEN COMPETITION: ☐ 10 U.S.C. 2304 (c) ☐ 41 U.S.C. 3304(a) ()			23. SUBMIT INVOICES TO ADDRESS SHOWN IN (4 copies unless otherwise specified)	
24. ADMINISTERED BY (If other than item 7)			25. PAYMENT WILL BE MADE BY CODE	
26. NAME OF CONTRACTING OFFICER (Type or print) EDWARD D. FLINT			27. UNITED STATES OF AMERICA (Signature of Contracting Officer)	
			28. AWARD DATE	

IMPORTANT - Award will be made on this Form, or on Standard Form 26, or by other authorized official written notice.

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Previous edition is unusable

Section A - Solicitation/Contract Form

BOS Services for NAS Sigonella

NAVAL FACILITIES ENGINEERING SYSTEMS COMMAND (NAVFAC), ATLANTIC

6506 HAMPTON BLVD

NORFOLK, VIRGINIA 23508-1278

NAVFAC RFP NUMBER: N6247025R0020

**BASE OPERATIONS SUPPORT (BOS) SERVICES AT U.S. NAVAL AIR STATION (NAS) SIGONELLA,
ITALY**

NOTICE: PROPOSALS ARE DUE BY 2:00 P.M., NORFOLK LOCAL TIME, ON 20 OCTOBER 2025

Proposal is to be submitted as listed below:

The due date, time, and the manner of submission are in section L1.

PRE-PROPOSAL CONFERENCE/SITE VISIT:

SITE VISIT WILL BE HELD on 30 September 2025 AT 0800 AM, EEST (EASTERN EUROPEAN SUMMER TIME).
See Attachment J-5 Pre-Proposal Site Visit Sigonella for more information.

A1 Contract Title

Base Operations Support (BOS) Services at U.S. Navy Air Station (NAS) Sigonella, Italy

A.2 TYPE OF CONTRACT

This acquisition will result in the award of an Indefinite-Delivery/Indefinite Quantity (IDIQ) Firm-Fixed Priced (FFP), performance-based type contract for BOS Services at NAS Sigonella, Italy that is comprised of both Recurring Work and Non-Recurring Work items.

A3 COMPETITION REQUIREMENTS/SET-ASIDE

This procurement is unrestricted.

A4 NAICS CODE

The NAICS code assigned to this procurement is 561210, Facility Support Services, having a small business size standard of \$47 million. Refer to Section K, Representations, Certifications and Other Statements of Offerors.

A5 REQUEST FOR PROPOSAL (RFP) FILES

It is the sole responsibility of the Offeror to obtain the RFP files, along with any amendments, from Contract Opportunities (www.sam.gov.) Unprotected editable electronic file copies of the RFP documents, including Word, Excel, and/or Adobe files will not be provided. Please plan accordingly.

Section B - Supplies or Services & Prices or Costs

Additional Information/Notes

B1 MAXIMUM NOT TO EXCEED (NTE) AND MINIMUM GUARANTEE

The maximum NTE value of an ordering period is the total of all the CLINs in that ordering period. The maximum or NTE value of the contract is the total value of all CLINs in the Schedule. Orders shall not be made that exceed the maximum NTE value for any ordering period. The maximum NTE value of an ordering period and of the contract may be increased by written modification to the contract in conjunction with any modification that increases the value of an existing task order that is authorized by a contract clause. Orders in excess of the estimated quantity set forth for any particular CLIN shall not be exceeded without the Contractor's agreement which shall be indicated by signing or beginning performance of the order.

Concurrently with the award of the basic contract, the Government intends to issue a task order, subject to the availability of funds, to obligate the contract minimum guarantee for:

CLIN 0001 Base Period Recurring work;

Minimum guarantees do not apply to the option periods.

B2. CONTRACT TERM

This contract contains provisions for one base period of twelve (12) months and includes up to seven (7) one-year option periods and one (1) six-month option period, for a proposed total contract term, if all options are exercised, not-to-exceed 102 months. As such, the contract includes FAR Clause 52.217-8--OPTION TO EXTEND SERVICES (NOV 1999). The Government has the option to extend the term of the contract in accordance with Section I, Contract Clauses, FAR Clause 52.217-9, OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000).

B3 CONTRACT LINE ITEMS, CONTRACT EXHIBIT LINE ITEMS AND SUBCLINS

- a. Offerors shall enter unit prices and amounts for Contract Line Items (CLINs) and Exhibit line items (ELINs) as indicated in the schedules and any accompanying exhibits. ELIN unit prices must be rounded to two (2) decimal places only, and each ELIN extended total price must be calculated based on the rounded unit price. If an offeror does not round ELIN unit prices to two (2) decimal places, then the Government will round the prices to two (2) decimal places and the rounded prices will be used for evaluation purposes. (It is highly recommended that Offerors use cell format "currency" in the electronic Microsoft Excel ELIN spreadsheet).
- b. In the event there is a difference between the unit price and the extended total amount, the unit price will be held to be the intended offer and the extended total of the CLIN and ELIN will be recomputed to take into account the change in the contract CLIN/ELINS. If the offeror provides a total amount for an ELIN but fails to enter the unit price, the extended total amount divided by the ELIN quantity will be held to be the intended unit price; however, if this calculation results in a unit price requiring more than two decimal places, then the unit price will be rounded to two decimal places, and the extended total price will be recalculated in accordance with the preceding paragraph.
- c. The Schedule of Recurring work (CLINs 0001, 0003, 0005, 0007, 0009, 0011, 0013, 0015, and 0017), and the Schedule of Non-Recurring work (CLIN 0002, 0004, 0006, 0008, 0010, 0012, 0014, 0016, and 0018), will be used as the basis for deductions in accordance with the FAR Clause 52.246-4 INSPECTION OF SERVICES - FIXEDPRICE (AUG 1996), Section E.
- d. Informational SubCLINs will be incorporated at the time of award with appropriate funding/lines of accounting by customer. These SubCLINS represent funding for each CLIN by customer. The contractor shall not submit totals for SubCLINS.

B4 INDEFINITE QUANTITY INDIVIDUAL CONTRACT LINE ITEM QUANTITIES

Once the estimated quantities for individual line items shown in the Schedule and any accompanying exhibits have been ordered, additional quantities may be ordered at the same rates or unit prices as awarded, as long as the overall not-to-exceed (NTE) amount of the contract per year is not exceeded.

B5 FULLY LOADED PRICING

Prices provided shall be fully loaded and no other allocations, fees, overheads, G&A, insurance, taxes, profits or any other markups shall be applied when an option is exercised or a Task Order is issued. Costs for technical specifications 0100000- General Information and 0200000- Management and Administration shall be considered overhead; therefore, those annexes' shall be allocated and included throughout the prices proposed for all other annexes. Further, the Government will not compensate the Contractor for individual non-recurring work proposal preparation or estimating costs.

B6 GOVERNMENT PURCHASE CARD

Non-Recurring work may be ordered at the prices offered by two ways:

- 1) By the issuing activity using a DD Form 1155 "Order for Supplies and Services"; or
- 2) By an authorized Government user via a Government Purchase Card (GPC).

When receiving GPC orders against Section B/Exhibits, the contractor shall provide the supplies and services at the offered price without additional markup or handling fee.

B7 UNIT PRICE ADJUSTMENTS IN OPTION PERIODS

In the event the Government elects to exercise an option period, the contract price proposed and accepted at time of award will be the contract price. No price adjustments will be made.

B8 BIDDING UNIT PRICES FOR LABOR

a. A portion of the work included in the scope of this contract cannot be identified in advance in sufficient detail to be included in the Recurring Work Items portion or as a Unit Price Task in the Non-Recurring Work Items portion of the contract. Labor for this work will be ordered under the "NON-RECURRING WORK/UNIT PRICED LABOR (UPL) WORK (NEGOTIATED)" clause in Section C and paid for based on unit prices for labor bid by the Contractor listed in the Schedule of Non-Recurring work.

b. Estimated hours in the Schedule are a forecast of future requirements. These estimated hours are for performing "Non-Recurring Work" accomplished in the time period shown.

c. The Contractor shall enter, in the unit price bid space, the unit price for performing composite labor. The composite labor price shall include all direct and indirect costs associated with performing an hour of work. The composite labor price should be the Contractor's hourly craft wage adjusted to allow for the offerors work force productivity (i.e., the Contractor's estimate of how its' work force will perform in relation to the Means Facilities Cost Data and/or the Engineered Performance Standards). The Composite Labor Rate shall include all costs for preparation of the cost proposal, job preparation, travel, pre-expended bin materials and supplies, ordering and stockpiling job material, additional material handling, items of equipment necessary to perform work (i.e. bucket truck, lifting equipment, staging, etc.), equipment set up time, lift time, craft delay allowance, profit, tools, equipment, field and home office overhead, clerical support, supervision, inspection, fees, taxes, licenses, bonds, permits, insurance, etc.

B9 PHASE-IN AND PHASE-OUT

Pricing shall include applicable Phase-In and Phase-Out costs, Phase-In shall be for a period of up to but no more than 60 days and Phase-Out to be for a period of up to but no more than thirty (30) days. There is no separately priced CLIN for Phase-In and Phase-Out and such costs can be distributed however the offeror chooses. The Government recognizes that offerors may choose to front load these costs into the base year.

B10 CONTRACT PRICE INFORMATION

For administrative purposes of the U.S. Government, the price of this contract and all subsequent task orders and modifications issued under this contract will be expressed in U.S. dollars. Payment will also be made in U.S. dollars.

B11 CONTRACTOR SUPPORT OF ELECTRONIC FACILITIES SUPPORT CONTRACTING (E-FSC)

This procurement allows for and the Government fully intends to use DoD FEDMALL for issuing orders under the Non-Recurring Work portion of the contract. Refer to Section H, Special Contract Requirements.

B12 PRIOR CONTRACT INFORMATION

This requirement is currently being satisfied under contract N62742-18-D-3010 Base Operations Support Services Contract at Sigonella, Italy, which was awarded to Valiant/Alca JV, LLC.

This information is provided for informational purposes only. Prospective offerors are cautioned that they should not rely on this information to determine workload as there is no assurance that workload and volume of future effort and costs will replicate past experience.

***NOTE* THE VALUES BELOW (ALLOWED PER ORDER AND GOVERNMENT MINIMUM / MAXIMUM TO ORDER) ARE PLACEHOLDER VALUES. THE FINAL VALUES WILL BE DETERMINED AT AWARD.**

Allowed Per Order

Minimum: 0.01 Dollars, U.S.

Maximum: 0.02 Dollars, U.S.

Government Minimum/Maximum to Order

Minimum: 0.01 Dollars, U.S.

Maximum: 0.02 Dollars, U.S.

Item	Supplies/Service	Estimated Quantity	Unit	Unit Price	Amount
0001	BASE YEAR RECURRING WORK IDIQ The total price for this CLIN represents the total Base Period (twelve months) for BOS services at U.S. Naval Air Station (NAS) Sigonella, Italy for recurring work in accordance with the PWS and all applicable attachments. Exhibit Line Item Numbers (ELINS): A001 through A021. Pricing Arrangement: Firm Fixed Price	1	Task		
0002	BASE YEAR NON-RECURRING WORK IDIQ The total price for this CLIN represents the total Base Period (twelve months) for BOS services at the Naval Air Station (NAS) Sigonella, Italy for non-recurring work in accordance with the PWS and all applicable attachments. ELINs A700 THROUGH A1032 Pricing Arrangement: Firm Fixed Price	1	Task		
Option Line Item 0003	OPTION PERIOD ONE RECURRING WORK IDIQ The total price for this CLIN represents the total Option Period One (twelve months) for BOS services at the Naval Air Station (NAS) Sigonella, Italy for recurring work in accordance with the PWS and all applicable attachments ELINs B001 THROUGH B021 Pricing Arrangement: Firm Fixed Price	1	Task		
Option Line Item 0004	OPTION PERIOD ONE NON-RECURRING WORK IDIQ The total price for this CLIN represents the total Option Period One (twelve months) for BOS services at U.S. Naval Air Station (NAS) Sigonella, Italy for non-recurring work in accordance with the PWS and all applicable attachments. ELINs B700 THROUGH B1032 Pricing Arrangement: Firm Fixed Price	1	Task		
Option Line Item 0005	OPTION PERIOD TWO RECURRING WORK IDIQ The total price for this CLIN represents the total Option Period Two (twelve months) for BOS services at U.S. Naval Air Station (NAS) Sigonella, Italy for recurring work in accordance with the PWS and all applicable attachments. ELINs C001 THROUGH C021	1	Task		

	Pricing Arrangement: Firm Fixed Price				
Option Line Item 0006	OPTION PERIOD TWO NON-RECURRING WORK The total price for this CLIN represents the total Option Period Two (twelve months) for BOS services at U.S. Naval Air Station (NAS) Sigonella, Italy for non-recurring work in accordance with the PWS and all applicable attachments. ELINs C700 THROUGH C1032 Pricing Arrangement: Firm Fixed Price	1	Task		
Option Line Item 0007	OPTION PERIOD THREE RECURRING WORK IDIQ The total price for this CLIN represents the total Option Period Three (twelve months) for BOS services at U.S. Naval Air Station (NAS) Sigonella, Italy for recurring work in accordance with the PWS and all applicable attachments. ELINs D001 THROUGH D021 Pricing Arrangement: Firm Fixed Price	1	Task		
Option Line Item 0008	OPTION PERIOD THREE NON-RECURRING WORK IDIQ The total price for this CLIN represents the total Option Period Three (twelve months) for BOS services at U.S. Naval Air Station (NAS) Sigonella, Italy for non-recurring work in accordance with the PWS and all applicable attachments. ELINs D700 THROUGH D1032 Pricing Arrangement: Firm Fixed Price	1	Task		
Option Line Item 0009	OPTION PERIOD FOUR RECURRING WORK IDIQ The total price for this CLIN represents the total Option Period Four (twelve months) for BOS services at U.S. Naval Air Station (NAS) Sigonella, Italy for recurring work in accordance with the PWS and all applicable attachments. ELINs E001 THROUGH E021 Pricing Arrangement: Firm Fixed Price	1	Task		
Option Line Item 0010	OPTION YEAR FOUR NON-RECURRING WORK IDIQ The total price for this CLIN represents the total Option Period Four (twelve months) for BOS services at U.S. Naval Air Station (NAS) Sigonella, Italy for non-recurring work in accordance with the PWS and all applicable attachments. ELINs E700 THROUGH E1032 Pricing Arrangement: Firm Fixed Price	1	Task		
Option Line Item 0011	OPTION PERIOD FIVE RECURRING WORK IDIQ The total price for this CLIN represents the total Option Period Five (twelve months) for BOS services at U.S. Naval Air Station (NAS) Sigonella, Italy for recurring work in accordance with the PWS and all applicable attachments. ELINs F001 THROUGH F021 Pricing Arrangement: Firm Fixed Price	1	Task		
	OPTION PERIOD FIVE NON-RECURRING WORK IDIQ The total price for this CLIN represents the total Option Period Five (twelve months) for BOS services at U.S. Naval Air Station (NAS) Sigonella, Italy for non-recurring work				

Option Line Item 0012	in accordance with the PWS and all applicable attachments. ELINs F700 THROUGH F1032 Pricing Arrangement: Firm Fixed Price	1	Task		
Option Line Item 0013	OPTION PERIOD SIX RECURRING WORK IDIQ The total price for this CLIN represents the total Option Period Six (twelve months) for BOS services at U.S. Naval Air Station (NAS) Sigonella, Italy for recurring work in accordance with the PWS and all applicable attachments. ELINs G001 THROUGH G021 Pricing Arrangement: Firm Fixed Price	1	Task		
Option Line Item 0014	OPTION PERIOD SIX NON-RECURRING WORK IDIQ The total price for this CLIN represents the total Option Period Six (twelve months) for BOS services at U.S. Naval Air Station (NAS) Sigonella, Italy for non-recurring work in accordance with the PWS and all applicable attachments. ELINs G700 THROUGH G1032 Pricing Arrangement: Firm Fixed Price	1	Task		
Option Line Item 0015	OPTION PERIOD SEVEN RECURRING WORK IDIQ The total price for this CLIN represents the total Option Period Seven (twelve months) for BOS services at U.S. Naval Air Station (NAS) Sigonella, Italy for recurring work in accordance with the PWS and all applicable attachments. ELINs H001 THROUGH H021 Pricing Arrangement: Firm Fixed Price	1	Task		
Option Line Item 0016	OPTION PERIOD SEVEN NON-RECURRING WORK IDIQ The total price for this CLIN represents the total Option Period Seven (twelve months) for BOS services at U.S. Naval Air Station (NAS) Sigonella, Italy for non-recurring work in accordance with the PWS and all applicable attachments. ELINs H700 THROUGH H1032 Pricing Arrangement: Firm Fixed Price	1	Task		
Option Line Item 0017	OPTION PERIOD EIGHT RECURRING WORK IDIQ The total price for this CLIN represents the total Option Period Eight (six months) for BOS services at U.S. Naval Air Station (NAS) Sigonella, Italy for recurring work in accordance with the PWS and all applicable attachments. ELINs J001 THROUGH J021 Pricing Arrangement: Firm Fixed Price	1	Task		
Option Line Item 0018	OPTION PERIOD EIGHT NON-RECURRING WORK IDIQ The total price for this CLIN represents the total Option Period Eight (six months) for BOS services at U.S. Naval Air Station (NAS) Sigonella, Italy for non-recurring work in accordance with the PWS and all applicable attachments. ELINs J700 THROUGH J1032 Pricing Arrangement: Firm Fixed Price	1	Task		

Section C - Description/Specifications/Statement of Work

C.1 PERFORMANCE WORK STATEMENT

All terms and conditions of the contract award, performance work statement, and all attachments are applicable. The proposal presented by the Offeror to whom the award is made will be incorporated, in whole or in part, into the contract at time of award. If the Contractor's proposal contains terms or conditions more favorable to the Government, these more favorable terms and conditions shall be performed. However, the minimum requirements of the Performance Work Statement (PWS) must be met.

Listed below are the Performance Work Statement Annexes.

NOTICE:

THE ANNEXES ARE PROVIDED SEPARATELY AS ATTACHMENTS IN SECTION J

Annex Number	Specification Number	Title
01	0100000	General Information
02	0200000	Management and Administration
14	1401000	Family Housing
	1402000	Unaccompanied Housing
15	1501000	Facility Management
	1502000	Facility Investment
	1503010	Custodial
	1503020	Pest Control
	1503030	Integrated Solid waste Management (ISWM)
	1503050	Grounds Maintenance and Landscaping
	1503060	Pavement Clearance
16	1601000	Utility Management
	1602000	Electrical

	1603000	Natural Gas
	1604000	Wastewater
	1606001	Water
17	1700000	Transportation
18	1800000	Environmental

C.2 REPORTING REQUIREMENTS

A detailed report allocating value of work/quantities performed by Contract Line Items (CLINs)/Sub-Line Items (SLINs) identified in the schedule and any accompanying Exhibits with Exhibit Line Items (ELINs) is to be submitted monthly, including all Recurring Work and Non-Recurring Work items completed. The Contractor shall notify the Contracting Officer when 75% of any Non-Recurring Work Line Item (CLIN/SLIN/ELIN) is reached.

Requirements

BOS Services at NAS Sigonella

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.222-7003	Permit from Italian Inspectorate of Labor.	Jun 1997		

Section D - Packaging and Marking

Section D - Packaging and Marking is not applicable to this Solicitation

Section E - Inspection and Acceptance

E1 ACCEPTANCE

The performance and quality of work delivered by the contractor, including services rendered and any documentation or written material compiled shall be subject to inspection, review, and acceptance by the Government.

E2 CONTRACTOR QUALITY MANAGEMENT SYSTEM (QMS)

The Contractor shall establish and maintain a Quality Management System Program in accordance with the FAR 52.246-4, "INSPECTION OF SERVICES - FIXED PRICE" clause, Section E. Each phase of services rendered under this contract is subject to Government inspection, during the Contractor's operations and after completion of

the tasks. The Government's Quality Assurance Surveillance Program is not a substitute for quality management by the Contractor. All findings of unsatisfactory or non-performed work will be administered in accordance with the FAR clause 52.246-4 INSPECTION OF SERVICES - FIXED-PRICE (AUG 1996) and using the Schedule of Recurring Work (CLINs 0001, 0003, 0005, 0007, 0009, 0011, 0013, 0015, and 0017) or Non-Recurring work

(CLINs 0002, 0004, 0006, 0008, 0010, 0012, 0014, 0016, and 0018), as the basis for any deductions. All costs associated with rework are the responsibility of the Contractor. The Government reserves the right to choose the inspection methods to be used in implementing its Quality Assurance Program and to vary the inspection methods utilized during the work, without notice to the Contractor.

The Contractor shall develop and submit to the Contracting Officer, a Quality Management (QM) Plan for approval per Section F. A general description of the Contractor's QMS program shall be available for Government review during the pre-award survey.

E3 PERFORMANCE EVALUATION MEETINGS

a. The Contractor shall meet with the Government's representative weekly during the first six (6) months of the contract. Thereafter, meetings will be as often as necessary at the discretion of the Contracting Officer, but not less than monthly. A mutual effort will be made to resolve all problems identified. The written minutes of these meetings, prepared by the Government, shall be signed by the Contractor's representative and the Government's representative. Should the Contractor not concur with the minutes, the Contractor shall state, in writing, to the Contracting Officer any areas of disagreement within ten (10) calendar days.

b. The Government will periodically assess the Contractor's overall performance in the Contractor Performance Assessment Reporting System (CPARS) allowing for correction and documentation of substandard performance. The Contractor will be afforded an opportunity to comment on each evaluation performed. The Contractor has 30 calendar days to submit written comments on unsatisfactory ratings.

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.246-2	Inspection of Supplies-Fixed-Price.	Aug 1996		
52.246-4	Inspection of Services-Fixed-Price.	Aug 1996		
52.246-16	Responsibility for Supplies.	Apr 1984		

DFARS Clauses Incorporated by Full Text

252.229-7003 Tax Exemptions (Italy).

(Mar 2012)

TAX EXEMPTIONS (ITALY) (MAR 2012)

(a) As the Contractor represented in its offer, the contract price, including the prices in subcontracts awarded under this contract, does not include taxes from which the United States Government is exempt.

(b) The United States Government is exempt from payment of Imposta Valore Aggiunto (IVA) tax in accordance with Article 72 of the IVA implementing decree on all supplies and services sold to United States Military Commands in Italy .

(1) The Contractor shall include the following information on invoices submitted to the United States Government:

(i) The contract number.

(ii) The IVA tax exemption claimed pursuant to Article 72 of Decree Law 633, dated October 26, 1972 .

(iii) The following fiscal code(s): *80156020630 for Navy*

(2)(i) Upon receipt of the invoice, the paying office will include the following certification on one copy of the invoice:

"I certify that this invoice is true and correct and reflects expenditures made in Italy for the Common Defense by the United States Government pursuant to international agreements. The amount to be paid does not include the IVA tax, because this transaction is not subject to the tax in accordance with Article 72 of Decree Law 633, dated October 26, 1972 ."

An authorized United States Government official will sign the copy of the invoice containing this certification.

(ii) The paying office will return the certified copy together with payment to the Contractor. The payment will not include the amount of the IVA tax.

(iii) The Contractor shall retain the certified copy to substantiate non-payment of the IVA tax.

(3) The Contractor may address questions regarding the IVA tax to the Ministry of Finance, IVA Office, Rome (06) 520741.

(c) In addition to the IVA tax, purchases by the United States Forces in Italy are exempt from the following taxes:

(1) Imposta di Fabbricazione (Production Tax for Petroleum Products).

(2) Imposta di Consumo (Consumption Tax for Electrical Power).

(3) Dazi Doganali (Customs Duties).

(4) Tassa di Sbarco e d'Imbarco sulle Merci Transportate per Via Aerea e per Via Maritima (Port Fees).

(5) Tassa de Circolazione sui Veicoli (Vehicle Circulation Tax).

(6) Imposta di Registro (Registration Tax).

(7) Imposta di Bollo (Stamp Tax).

(End of clause)

Section F - Deliveries or Performance

F.1 LOCATION

Reference Annex 0100000, Specification Item 1.2 Acquisition of Additional Work and 1.7 Verification of Workload and Conditions.

F.2 PHASE-IN AND PHASE-OUT TRANSITION PLAN

Pricing shall include applicable Phase-in of up to but no more than 60 days and up to but no more than 30 days for Phase-out costs. There is not a separately priced CLIN for phase-in and phase-out and such costs can be distributed however the offeror chooses. The Government recognizes that offerors may choose to front load these costs into the base year.

F.3 PERFORMANCE PERIOD OF CONTRACT

The contract shall be for one base period of twelve (12) months with seven (7) one-year option periods and one (1) six-month option period. If all options are exercised, the final expiration date will not-to-exceed 102 months from the start of the initial period of performance. At the time of solicitation issuance, the anticipated required start date of services is 01 January 2027.

The Government has the option to extend the term of the contract in accordance with FAR Clause 52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000), Section I. If the Government requires a shorter base period or exercised an option for a period shorter documented within the contract, the proposed ELIN prices will be used as the basis for establishing the reduced price. The duration of the contract if all options are exercised is 102 months, which includes six months for extended services. As such, the contract includes FAR 52.217-8 - OPTION TO EXTEND SERVICES (NOV 1999).

F.4 SERVICE CONTRACT REPORTING REQUIREMENTS

In accordance with FAR 52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts, the Contractor shall report all contractor labor hours (including subcontractor labor hours) required for performance of services provided under this contract via a secure data collection site.

The Contractor is required to completely fill in all required data fields using the following web address, <https://sam.gov>.

Reporting inputs will be for the labor executed during the period of performance during each Government fiscal year (FY), which runs October 1 through September 30. While inputs may be reported any time during the FY, all data shall be reported no later than October 31 of each calendar year. Contractors may direct questions to the help desk, linked at <https://sam.gov>.

F.5 DELIVERABLES

All deliverables for the below Annex table of contents are provided in a separate attachment entitled Attachment F - Section F Deliverables. All deliverables shall be in Microsoft Office (Word/Excel) electronic format unless otherwise specified.

Annex Number	Specification Number	Title
01	0100000	General Information
02	0200000	Management and Administration

14	1401000	Family Housing
	1402000	Unaccompanied Housing
15	1501000	Facility Management
	1502000	Facility Investment
	1503010	Custodial
	1503020	Pest Control
	1503030	Integrated Solid waste Management (ISWM)
	1503050	Grounds Maintenance and Landscaping
	1503060	Pavement Clearance
16	1601000	Utility Management
	1602000	Electrical
	1603000	Natural Gas
	1604000	Wastewater
	1606001	Water
17	1700000	Transportation
18	1800000	Environmental

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.242-15	Stop-Work Order.	Aug 1989		
52.242-17	Government Delay of Work.	Apr 1984		
52.247-34	F.o.b. Destination.	Jan 1991		

Section G - Contract Administration Data

G1 CONTRACT ADMINISTRATION

This solicitation will result in the award of one (1) contract. Upon award of this contract, Contract Administration shall be assigned to the following Facilities Contracting Department:

The Procuring Contracting Officer for this procurement is:

Ed Flint

NAVFAC Atlantic, CON36

6506 Hampton Blvd.

Norfolk, Virginia 23508

Email: edward.d.flint.civ@us.navy.mil

Telephone: 757-322-4841

Upon award of this Contract, Contract Administration shall be assigned to the following Facilities Contracting Department:

Administering Contracting Officer - To be identified at time of award

Contracting Officer Representative (COR) - To be identified at time of award

G2 RELEASE OF CLAIMS

The contractor shall, with the final invoice for the base term and each option period, provide a release of claims worded similar to the following:

The undersigned Contractor does, and by the receipt of said sum shall for itself, its successors and assigns, remise, release and forever discharge the Government, its officers, agents, and employees, of and from all liabilities, obligations and claims whatsoever in law and in equity under or arising to day out of said contract.

G.3 INVOICING INSTRUCTIONS

Invoices for services rendered under this contract shall be submitted electronically through Wide Area Work Flow (WAWF), in accordance with DFARS 252.232-7006, WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (DEC 2018) using WAWF and DFARS 252.232-7003, ELECTRONIC SUBMISSION OF PAYMENT REQUESTS AND RECEIVING REPORTS (DEC 2018).

Invoices for Non-Recurring/Task Order work shall be processed according to the guidance submitted within each task order placed under this contract. Specific invoicing instructions as required by DFARS 252.232-7003. Please note, routing table information will be provided on individual task orders.

To comply with the DFARS Clause 252.232-7003 ELECTRONIC SUBMISSION OF PAYMENT REQUESTS AND RECEIVING REPORTS (DEC 2018), the contractor is required to register for WAWF at <https://wawf.eb.mil/>. WAWF training is available from the WAWF main website or directly at <http://www.wawftraining.com>. WAWF questions should be directed to the WAWF helpdesk at 866-618-5988.

G4 INSTRUCTIONS TO ADMINISTRATIVE CONTRACTING OFFICES AND PAYING OFFICES

- a. The Contract Administrative/Purchasing Office for this contract is: To be determined at time of award
- b. Payments will be made by: To be determined at time of award

G5 MODIFICATION PROPOSALS- PRICE BREAKDOWN

a. The Contractor, in connection with any proposal he makes for a contract modification, shall provide a price breakdown, itemized as required by the Contracting Officer. Unless otherwise directed, the breakdown shall contain sufficient detail to permit an analysis of all material, labor, equipment, subcontract, and overhead costs, as well as profit, and shall cover all work involved in the modification, whether such work was deleted, added, or changed.

Any amount claimed for subcontractors shall be supported by a similar price breakdown.

b. In addition, if the proposal includes a time extension, a justification thereof shall also be furnished. The proposal, together with the price breakdown and time extension justification, shall be furnished by the date specified by the Contracting Officer.

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.201-7000	Contracting Officer's Representative.	Dec 1991		
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	Dec 2018		
252.232-7008	Assignment of Claims (Overseas).	Jun 1997		

DFARS Clauses Incorporated by Full Text**252.232-7006 Wide Area WorkFlow Payment Instructions.****(Jan 2023)****WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)**

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

- (1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and
- (2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

To be completed at Task Order level.

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

To be completed at Task Order level.

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

<i>Field Name in WAWF</i>	<i>Data to be entered in WAWF</i>
Pay Official DoDAAC	_____
Issue By DoDAAC	_____
Admin DoDAAC	_____
Inspect By DoDAAC	_____
Ship To Code	_____
Ship From Code	_____
Mark For Code	_____

Service Approver (DoDAAC)	_____
Service Acceptor (DoDAAC)	_____
Accept at Other DoDAAC	_____
LPO DoDAAC	_____
DCAA Auditor DoDAAC	_____
Other DoDAAC(s)	_____

**To be completed at Task Order level.*

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

To be completed at Task Order level.

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Section H - Special Contract Requirements

H.1 HISTORICAL AND ARCHAEOLOGICAL RESOURCES

Carefully protect in-place and report immediately to the Contracting Officer historical and archaeological items or human skeletal remains discovered in the course of work. Stop work in the immediate area of the discovery until directed by the Contracting Officer to resume work. The Government retains ownership and control over historical and archaeological resources.

H.2 PERSONAL LIABILITY OF U.S. PERSONNEL

This contract is between the United States of America and the Contractor. The Contracting Officer, his agents and representatives, shall not be personally liable or responsible to the Contractor for their official acts in the execution or administration of this contract.

H.3 SECURITY REQUIREMENTS

Reference Annex 0200000 Security Requirements.

H.4 ENGLISH SPEAKING REPRESENTATIVE

At all times when any performance of the work at the site is being conducted by any employee of the Contractor or his subcontractors, the Contractor shall have a representative present on the site that is capable of explaining the work operations and receiving instruction in the English language. The Contracting Officer shall have the right to determine without appeal of such decision, whether the proposed representative has sufficient technical and lingual capabilities and the Contractor shall immediately replace any individual not acceptable to the Contracting Officer.

H.5 CODE COMPLIANCE

U.S. installations within Sigonella are subject to compliance with Italy's building codes. Where Italy's codes are more stringent than U.S. codes, Italy's codes apply. Where United States building codes are more stringent than Italy's codes, U.S. codes apply.

H.6 CONTRACTOR SUPPORT OF ELECTRONIC CONTRACTING (DOD FEDMALL)

The contractor is required to offer Non-Recurring Work/IQ pre-priced line item services to authorized Government personnel when they are ordering the work directly via the Government-wide Commercial Purchase Card (GCPC) program. When receiving GCPC orders against Section B, the contractor shall provide the supplies and services at the offered price without additional markup or handling fee.

The contractor agrees to accept and process electronically submitted GCPC orders for Non-Recurring Work/IQ services, including those orders issued through the DOD FEDMALL. The DOD FEDMALL is a U.S. Government (USG) owned and operated web-based ordering system that enables any Department of Defense (DOD) or Federal activity to search for and order goods and

services. Authorized GPC users will receive approved accounts on DOD FEDMALL to view and order Non-Recurring Work/IQ line items.

The contractor is required to receive electronic IQ orders from the DOD FEDMALL using 128-bit encrypted email. The contractor agrees to purchase, install, and utilize the most recent version of PGP Personal software, or a comparable solution, for the purpose of decrypting order notification emails from the DOD FEDMALL. In addition, the DoD has established the External Certification Authority (ECA) program to support the issuance of DoD- approved certificates to contractors. The ECA program is designed to provide the mechanism for contractors to securely communicate with the DoD and authenticate to DoD Information Systems. The contractor agrees to purchase, install, maintain and use a DoD-approved ECA certificate. Information on obtaining an ECA certificate can be found at <http://iase.disa.mil/pki/eca/Pages/certificate.aspx>.

The contractor shall post updates on order delivery schedule and performance to the DOD FEDMALL in a timely manner.

The contractor shall track quantities and report total ordered quantity in DOD FEDMALL and approved DD 1155's by line item number each month and year-to-date. The report shall be due to the Contracting Officer by the fifth day of the following month. The contractor must track and report when total dollar value of all orders from both GPC purchases and DD 1155s exceed 75% of the combined Section B Pre-Priced line item quantities.

The following ELINS will NOT be available for ordering via DoD FEDMALL as negotiations to establish a firm fixed price are required prior to issuance.: Unit Price Labor (UPL), Direct Material Costs & Special Equipment Rental associated with Non-Recurring Work ELINs (A1030 through A1032), (B1030 through B1032), (C1030 through C1032), (D1030 through D1032), (E1030 through E1032), (F1030 through F1032), (G1030 through G1032), and (H1030 through H1032).

Section I - Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.202-1	Definitions.	Jun 2020		
52.203-3	Gratuities.	Apr 1984		
52.203-5	Covenant Against Contingent Fees.	May 2014		
52.203-6	Restrictions on Subcontractor Sales to the Government.	Jun 2020		
52.203-7	Anti-Kickback Procedures.	Jun 2020		
52.203-8	Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity.	May 2014		
52.203-10	Price or Fee Adjustment for Illegal or Improper Activity.	May 2014		
52.203-12	Limitation on Payments to Influence Certain Federal Transactions.	Jun 2020		
52.203-13	Contractor Code of Business Ethics and Conduct.	Nov 2021		
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	Jan 2017		
52.204-9	Personal Identity Verification of Contractor Personnel.	Jan 2011		
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards.	Jun 2020		
52.204-13	System for Award Management Maintenance.	Oct 2018		
52.204-18	Commercial and Government Entity Code Maintenance.	Aug 2020		
52.204-19	Incorporation by Reference of Representations and Certifications.	Dec 2014		
52.204-21	Basic Safeguarding of Covered Contractor Information Systems.	Nov 2021		
52.204-23	Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities.	Dec 2023		
52.204-25	Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.	Nov 2021		
52.204-27	Prohibition on a ByteDance Covered Application.	Jun 2023		
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded	Jan 2025		
52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters.	Oct 2018		
52.209-10	Prohibition on Contracting with Inverted Domestic Corporations.	Nov 2015		
52.210-1	Market Research.	Nov 2021		
52.215-2	Audit and Records-Negotiation.	Jun 2020		
52.215-8	Order of Precedence-Uniform Contract Format.	Oct 1997		
52.215-11	Price Reduction for Defective Certified Cost or Pricing Data-Modifications.	Jun 2020		
52.215-14	Integrity of Unit Prices.	Nov 2021		
52.215-15	Pension Adjustments and Asset Reversions.	Oct 2010		
52.215-17	Waiver of Facilities Capital Cost of Money.	Oct 1997		
52.215-18	Reversion or Adjustment of Plans for Postretirement Benefits (PRB) Other Than Pensions.	Jul 2005		
52.215-19	Notification of Ownership Changes.	Oct 1997		
52.222-20	Contracts for Materials, Supplies, Articles, and Equipment.	Jun 2020		
52.222-41	Service Contract Labor Standards.	Aug 2018		
52.222-43	Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts).	Aug 2018		
52.222-50	Combating Trafficking in Persons.	Nov 2021		
52.223-2	Reporting of Biobased Products Under Service and Construction Contracts.	May 2024		
52.223-5	Pollution Prevention and Right-to-Know Information.	May 2024		
52.223-10	Waste Reduction Program.	May 2024		
52.224-1	Privacy Act Notification.	Apr 1984		
52.224-2	Privacy Act.	Apr 1984		
52.224-3	Privacy Training.	Jan 2017		
52.224-3	Privacy Training. (Alternate I)	Jan 2017	Alternate I	Jan 2017
52.225-13	Restrictions on Certain Foreign Purchases.	Feb 2021		
52.225-14	Inconsistency between English Version and Translation of Contract.	Feb 2000		
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	May 2024		
52.228-3	Workers' Compensation Insurance (Defense Base Act).	Jul 2014		
52.228-5	Insurance-Work on a Government Installation.	Jan 1997		
52.229-6	Taxes-Foreign Fixed-Price Contracts.	Feb 2013		
52.232-1	Payments.	Apr 1984		
52.232-4	Payments under Transportation Contracts and Transportation-Related Services Contracts.	Apr 1984		
52.232-8	Discounts for Prompt Payment.	Feb 2002		
52.232-9	Limitation on Withholding of Payments.	Apr 1984		
52.232-11	Extras.	Apr 1984		
52.232-17	Interest.	May 2014		
52.232-18	Availability of Funds.	Apr 1984		
52.232-25	Prompt Payment.	Jan 2017		
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	Oct 2018		
52.232-36	Payment by Third Party.	May 2014		
52.232-37	Multiple Payment Arrangements.	May 1999		

52.232-39	Unenforceability of Unauthorized Obligations.	Jun 2013		
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	Mar 2023		
52.233-1	Disputes. (Alternate I)	May 2014	Alternate I	Dec 1991
52.233-3	Protest after Award.	Aug 1996		
52.233-4	Applicable Law for Breach of Contract Claim.	Oct 2004		
52.236-13	Accident Prevention.	Nov 1991		
52.237-2	Protection of Government Buildings, Equipment, and Vegetation.	Apr 1984		
52.237-3	Continuity of Services.	Jan 1991		
52.240-1	Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities.	Nov 2024		
52.242-13	Bankruptcy.	Jul 1995		
52.243-1	Changes-Fixed-Price. (Alternate II)	Aug 1987	Alternate II	Apr 1984
52.244-6	Subcontracts for Commercial Products and Commercial Services.	Jan 2025		
52.245-1	Government Property.	Sep 2021		
52.245-9	Use and Charges.	Apr 2012		
52.246-25	Limitation of Liability-Services.	Feb 1997		
52.246-26	Reporting Nonconforming Items.	Aug 2024		
52.247-5	Familiarization with Conditions.	Apr 1984		
52.247-12	Supervision, Labor, or Materials.	Apr 1984		
52.249-2	Termination for Convenience of the Government (Fixed-Price).	Apr 2012		
52.249-8	Default (Fixed-Price Supply and Service).	Apr 1984		
52.251-1	Government Supply Sources.	Apr 2012		
52.253-1	Computer Generated Forms.	Jan 1991		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Sep 2011		
252.203-7001	Prohibition on Persons Convicted of Fraud or Other Defense-Contract-Related Felonies.	Jan 2023		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	Dec 2022		
252.203-7004	Display of Hotline Posters.	Jan 2023		
252.204-7000	Disclosure of Information.	Oct 2016		
252.204-7003	Control of Government Personnel Work Product.	Apr 1992		
252.204-7004	Antiterrorism Awareness Training for Contractors.	Jan 2023		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting.	May 2024		
252.204-7015	Notice of Authorized Disclosure of Information for Litigation Support.	Jan 2023		
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	Jan 2023		
252.204-7020	NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		
252.204-7021	Contractor Compliance with the Cybersecurity Maturity Model Certification Level Requirement.	Jan 2023		
252.205-7000	Provision of Information to Cooperative Agreement Holders.	Oct 2024		
252.209-7004	Subcontracting with Firms that are Owned or Controlled by the Government of a Country that is a State Sponsor of Terrorism.	May 2019		
252.222-7002	Compliance with Local Labor Laws (Overseas).	Jun 1997		
252.223-7006	Prohibition on Storage, Treatment, and Disposal of Toxic or Hazardous Materials.	Sep 2014		
252.223-7008	Prohibition of Hexavalent Chromium.	Jan 2023		
252.225-7004	Report of Intended Performance Outside the United States and Canada -Submission after Award.	Jul 2024		
252.225-7005	Identification of Expenditures in the United States .	Jun 2005		
252.225-7012	Preference for Certain Domestic Commodities.	Apr 2022		
252.225-7041	Correspondence in English.	Jun 1997		
252.225-7048	Export-Controlled Items.	Jun 2013		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	Jan 2023		
252.225-7058	Postaward Disclosure of Employment of Individuals Who Work in the People's Republic of China.	Jan 2023		
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	Jun 2023		
252.226-7001	Utilization of Indian Organizations, Indian-Owned Economic Enterprises, and Native Hawaiian Small Business Concerns.	Jan 2023		
252.227-7013	Rights in Technical Data-Other Than Commercial Products and Commercial Services.	Jan 2025		
252.227-7016	Rights in Bid or Proposal Information.	Jan 2025		
252.227-7025	Limitations on the Use or Disclosure of Government-Furnished	Jan 2025		
252.227-7030	Technical Data-Withholding of Payment.	Mar 2000		
252.227-7037	Validation of Asserted Restrictions on Technical Data.	Jan 2025		
252.228-7007	Public Aircraft and State Aircraft Operations-Liability.	Mar 2023		
252.232-7010	Levies on Contract Payments.	Dec 2006		
252.233-7001	Choice of Law (Overseas).	Jun 1997		
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.	Jan 2023		
252.237-7018	Special Definitions of Government Property.	Dec 1991		
252.241-7001	Government Access.	Dec 1991		

252.243-7001	Pricing of Contract Modifications.	Dec 1991		
252.243-7002	Requests for Equitable Adjustment.	Dec 2022		
252.244-7000	Subcontracts for Commercial Products or Commercial Services.	Nov 2023		
252.244-7001	Contractor Purchasing System Administration. (Alternate I)	Jan 2025	Alternate I	Jan 2025
252.245-7003	Contractor Property Management System Administration	Jan 2025		
252.245-7005	Management and Reporting of Government Property.	Jan 2024		
252.246-7007	Contractor Counterfeit Electronic Part Detection and Avoidance System.	Jan 2023		
252.246-7008	Sources of Electronic Parts.	Jan 2023		
252.247-7023	Transportation of Supplies by Sea.	Oct 2024		

FAR Clauses Incorporated by Full Text

52.204-30 Federal Acquisition Supply Chain Security Act Orders-Prohibition. (Dec 2023)

FEDERAL ACQUISITION SUPPLY CHAIN SECURITY ACT ORDERS-PROHIBITION (DEC 2023)

(a) *Definitions.* As used in this clause-

Covered article, as defined in 41 U.S.C. 4713(k), means-

- (1) Information technology, as defined in 40 U.S.C. 11101, including cloud computing services of all types;
- (2) Telecommunications equipment or telecommunications service, as those terms are defined in section 3 of the Communications Act of 1934 (47 U.S.C. 153);
- (3) The processing of information on a Federal or non-Federal information system, subject to the requirements of the Controlled Unclassified Information program (see 32 CFR part 2002); or
- (4) Hardware, systems, devices, software, or services that include embedded or incidental information technology.

FASCSA order means any of the following orders issued under the Federal Acquisition Supply Chain Security Act (FASCSA) requiring the removal of covered articles from executive agency information systems or the exclusion of one or more named sources or named covered articles from executive agency procurement actions, as described in 41 CFR 201-1.303(d) and (e):

- (1) The Secretary of Homeland Security may issue FASCSA orders applicable to civilian agencies, to the extent not covered by paragraph (2) or (3) of this definition. This type of FASCSA order may be referred to as a Department of Homeland Security (DHS) FASCSA order.
- (2) The Secretary of Defense may issue FASCSA orders applicable to the Department of Defense (DoD) and national security systems other than sensitive compartmented information systems. This type of FASCSA order may be referred to as a DoD FASCSA order.
- (3) The Director of National Intelligence (DNI) may issue FASCSA orders applicable to the intelligence community and sensitive compartmented information systems, to the extent not covered by paragraph (2) of this definition. This type of FASCSA order may be referred to as a DNI FASCSA order.

Intelligence community, as defined by 50 U.S.C. 3003(4), means the following-

- (1) The Office of the Director of National Intelligence;
- (2) The Central Intelligence Agency;
- (3) The National Security Agency;
- (4) The Defense Intelligence Agency;
- (5) The National Geospatial-Intelligence Agency;
- (6) The National Reconnaissance Office;
- (7) Other offices within the Department of Defense for the collection of specialized national intelligence through reconnaissance programs;
- (8) The intelligence elements of the Army, the Navy, the Air Force, the Marine Corps, the Coast Guard, the Federal Bureau of Investigation, the Drug Enforcement Administration, and the Department of Energy;
- (9) The Bureau of Intelligence and Research of the Department of State;
- (10) The Office of Intelligence and Analysis of the Department of the Treasury;
- (11) The Office of Intelligence and Analysis of the Department of Homeland Security; or
- (12) Such other elements of any department or agency as may be designated by the President, or designated jointly by the Director of National Intelligence and the head of the department or agency concerned, as an element of the intelligence community.

National security system, as defined in 44 U.S.C. 3552, means any information system (including any telecommunications system) used or operated by an agency or by a contractor of an agency, or other organization on behalf of an agency-

(1) The function, operation, or use of which involves intelligence activities; involves cryptologic activities related to national security; involves command and control of military forces; involves equipment that is an integral part of a weapon or weapons system; or is critical to the direct fulfillment of military or intelligence missions, but does not include a system that is to be used for routine administrative and business applications (including payroll, finance, logistics, and personnel management applications); or

(2) Is protected at all times by procedures established for information that have been specifically authorized under criteria established by an Executive order or an Act of Congress to be kept classified in the interest of national defense or foreign policy.

Reasonable inquiry means an inquiry designed to uncover any information in the entity's possession about the identity of any covered articles, or any products or services produced or provided by a source. This applies when the covered article or the source is subject to an applicable FASCSA order. A reasonable inquiry excludes the need to include an internal or third-party audit.

Sensitive compartmented information means classified information concerning or derived from intelligence sources, methods, or analytical processes, which is required to be handled within formal access control systems established by the Director of National Intelligence.

Sensitive compartmented information system means a national security system authorized to process or store sensitive compartmented information.

Source means a non-Federal supplier, or potential supplier, of products or services, at any tier.

(b) *Prohibition.*

(1) Unless an applicable waiver has been issued by the issuing official, Contractors shall not provide or use as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA orders as follows:

(i) For solicitations and contracts awarded by a Department of Defense contracting office, DoD FASCSA orders apply.

(ii) For all other solicitations and contracts DHS FASCSA orders apply.

(2) The Contractor shall search for the phrase "FASCSA order" in the System for Award Management (SAM) at <https://www.sam.gov> to locate applicable FASCSA orders identified in paragraph (b)(1).

(3) The Government may identify in the solicitation additional FASCSA orders that are not in SAM, which are effective and apply to the solicitation and resultant contract.

(4) A FASCSA order issued after the date of solicitation applies to this contract only if added by an amendment to the solicitation or modification to the contract (see FAR 4.2304(c)). However, see paragraph (c) of this clause.

(5)

(i) If the contractor wishes to ask for a waiver of the requirements of a new FASCSA order being applied through modification, then the Contractor shall disclose the following:

(A) Name of the product or service provided to the Government;

(B) Name of the covered article or source subject to a FASCSA order;

(C) If applicable, name of the vendor, including the Commercial and Government Entity code and unique entity identifier (if known), that supplied or supplies the covered article or the product or service to the Offeror;

(D) Brand;

(E) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);

(F) Item description;

(G) Reason why the applicable covered article or the product or service is being provided or used;

(ii) *Executive agency review of disclosures.* The contracting officer will review disclosures provided in paragraph (b)(5)(i) to determine if any waiver is warranted. A contracting officer may choose not to pursue a waiver for covered articles or sources otherwise covered by a FASCSA order and to instead pursue other appropriate action.

(c) *Notice and reporting requirement.*

(1) During contract performance, the Contractor shall review *SAM.gov* at least once every three months, or as advised by the Contracting Officer, to check for covered articles subject to FASCSA order(s), or for products or services produced by a source subject to FASCSA order(s) not currently identified under paragraph (b) of this clause.

(2) If the Contractor identifies a new FASCSA order(s) that could impact their supply chain, then the Contractor shall conduct a reasonable inquiry to identify whether a covered article or product or service produced or provided by a source subject to the FASCSA order(s) was provided to the Government or used during contract performance.

(3)

(i) The Contractor shall submit a report to the contracting office as identified in paragraph (c)(3)(ii) of this clause, if the Contractor identifies, including through any notification by a subcontractor at any tier, that a covered article or product or service produced or provided by a source was provided to the Government or used during contract performance and is subject to a FASCSA order(s) identified in paragraph (b) of this clause, or a new FASCSA order identified in paragraph (c)(2) of this clause. For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order.

(ii) If a report is required to be submitted to a contracting office under (c)(3)(i) of this clause, the Contractor shall submit the report as follows:

(A) If a Department of Defense contracting office, the Contractor shall report to the website at <https://dibnet.dod.mil>.

(B) For all other contracting offices, the Contractor shall report to the Contracting Officer.

(4) The Contractor shall report the following information for each covered article or each product or service produced or provided by a source, where the covered article or source is subject to a FASCSA order, pursuant to paragraph (c)(3)(i) of this clause:

(i) Within 3 business days from the date of such identification or notification:

(A) Contract number;

(B) Order number(s), if applicable;

(C) Name of the product or service provided to the Government or used during performance of the contract;

(D) Name of the covered article or source subject to a FASCSA order;

(E) If applicable, name of the vendor, including the Commercial and Government Entity code and unique entity identifier (if known), that supplied the covered article or the product or service to the Contractor;

(F) Brand;

(G) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);

(H) Item description; and

(I) Any readily available information about mitigation actions undertaken or recommended.

(ii) Within 10 business days of submitting the information in paragraph (c)(4)(i) of this clause:

(A) Any further available information about mitigation actions undertaken or recommended.

(B) In addition, the Contractor shall describe the efforts it undertook to prevent submission or use of the covered article or the product or service produced or provided by a source subject to an applicable FASCSA order, and any additional efforts that will be incorporated to prevent future submission or use of the covered article or the product or service produced or provided by a source that is subject to an applicable FASCSA order.

(d) *Removal.* For Federal Supply Schedules, Governmentwide acquisition contracts, multi-agency contracts or any other procurement instrument intended for use by multiple agencies, upon notification from the Contracting Officer, during the performance of the contract, the Contractor shall promptly make any necessary changes or modifications to remove any product or service produced or provided by a source that is subject to an applicable FASCSA order.

(e) *Subcontracts.*

(1) The Contractor shall insert the substance of this clause, including this paragraph (e) and excluding paragraph (c)(1) of this clause, in all subcontracts and other contractual instruments, including subcontracts for the acquisition of commercial products and commercial services.

(2) The Government may identify in the solicitation additional FASCSA orders that are not in SAM, which are effective and apply to the contract and any subcontracts and other contractual instruments under the contract. The Contractor or higher-tier subcontractor shall notify their subcontractors, and suppliers under other contractual instruments, that the FASCSA orders in the solicitation that are not in SAM apply to the contract and all subcontracts.

(End of clause)

Alternate IV (Oct 2010). As prescribed in 15.408 (m), replace the text of the basic clause with the following:

- (a) Submission of certified cost or pricing data is not required.
- (b) Provide data described below:

Submit in accordance with the Solicitation Requirements.

52.216-18 Ordering.

(Aug 2020)

Ordering (Aug 2020)

- (a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from **the date of award of this contract through last date of this contract's base period of performance or the last date of the recently exercised option period, whichever is later.**
 - (b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.
 - (c) A delivery order or task order is considered "issued" when-
 - (1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;
 - (2) If sent by fax, the Government transmits the order to the Contractor's fax number; or
 - (3) If sent electronically, the Government either-
 - (i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or
 - (ii) Distributes the delivery order or task order via email to the Contractor's email address.
 - (d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.
- (End of clause)

52.216-19 Order Limitations.

(Oct 1995)

Order Limitations (Oct 1995)

- (a) *Minimum order.* When the Government requires supplies or services covered by this contract in an amount of less than \$ _____, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.
 - (b) *Maximum order.* The Contractor is not obligated to honor-
 - (1) Any order for a single item in excess of \$ _____;
 - (2) Any order for a combination of items in excess of \$ _____; or
 - (3) A series of orders from the same ordering office within **three (3) days** that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.
 - (c) If this is a requirements contract (*i.e.*, includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.
 - (d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within **three (3) day** after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.
- (End of clause)

52.216-22 Indefinite Quantity.

(Oct 1995)

Indefinite Quantity (Oct 1995)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; *provided*, that the Contractor shall not be required to make any deliveries under this contract after **the date cited in any task order issued under the contract.**

(End of clause)

52.216-24 Limitation of Government Liability.

(Apr 1984)

Limitation of Government Liability (Apr 1984)

(a) In performing this contract, the Contractor is not authorized to make expenditures or incur obligations exceeding ____ dollars.

(b) The maximum amount for which the Government shall be liable if this contract is terminated is ____ dollars.

(End of clause)

52.217-8 Option to Extend Services.

(Nov 1999)

Option to Extend Services (Nov 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within **at least 30 days prior to the contract expiring for CLINs 0017 and 0018.**

(End of clause)

52.217-9 Option to Extend the Term of the Contract.

(Mar 2000)

Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor **before the term of the contract expires**; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least **30 days** before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed **102 (months).**

(End of clause)

52.223-3 Hazardous Material Identification and Material Safety Data.

(Feb 2021)

Hazardous Material Identification and Material Safety Data (Feb 2021)

(a) "Hazardous material," as used in this clause, includes any material defined as hazardous under the latest version of Federal Standard No.313 (including revisions adopted during the term of the contract).

(b) The offeror must list any hazardous material, as defined in paragraph (a) of this clause, to be delivered under this contract. The hazardous material shall be properly identified and include any applicable identification number, such as National Stock Number or Special Item Number. This information shall also be included on the Material Safety Data Sheet submitted under this contract.

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Material (If none, insert <i>None</i>)	Identification No.
_____	_____
_____	_____
_____	_____

(c) This list must be updated during performance of the contract whenever the Contractor determines that any other material to be delivered under this contract is hazardous.

(d) The apparently successful offeror agrees to submit, for each item as required prior to award, a Material Safety Data Sheet, meeting the requirements of 29 CFR 1910.1200(g) and the latest version of Federal Standard No.313, for all hazardous material identified in paragraph (b) of this clause. Data shall be submitted in accordance with Federal Standard No.313, whether or not the apparently successful offeror is the actual manufacturer of these items. Failure to submit the Material Safety Data Sheet prior to award may result in the apparently successful offeror being considered nonresponsible and ineligible for award.

(e) If, after award, there is a change in the composition of the item(s) or a revision to Federal Standard No.313, which renders incomplete or inaccurate the data submitted under paragraph (d) of this clause, the Contractor shall promptly notify the Contracting Officer and resubmit the data.

(f) Neither the requirements of this clause nor any act or failure to act by the Government shall relieve the Contractor of any responsibility or liability for the safety of Government, Contractor, or subcontractor personnel or property.

(g) Nothing contained in this clause shall relieve the Contractor from complying with applicable Federal, State, and local laws, codes, ordinances, and regulations (including the obtaining of licenses and permits) in connection with hazardous material.

(h) The Government's rights in data furnished under this contract with respect to hazardous material are as follows:

(1) To use, duplicate and disclose any data to which this clause is applicable. The purposes of this right are to-

(i) Apprise personnel of the hazards to which they may be exposed in using, handling, packaging, transporting, or disposing of hazardous materials;

(ii) Obtain medical treatment for those affected by the material; and

(iii) Have others use, duplicate, and disclose the data for the Government for these purposes.

(2) To use, duplicate, and disclose data furnished under this clause, in accordance with paragraph (h)(1) of this clause, in precedence over any other clause of this contract providing for rights in data.

(3) The Government is not precluded from using similar or identical data acquired from other sources.

(End of clause)

52.232-19 Availability of Funds for the Next Fiscal Year.

(Apr 1984)

AVAILABILITY OF FUNDS FOR THE NEXT FISCAL YEAR (APR 1984)

Funds are not presently available for performance under this contract beyond _____. The Government's obligation for performance of this contract beyond that date is contingent upon the availability of appropriated funds from which payment for contract purposes can be made. No legal liability on the part of the Government for any payment may arise for performance under this contract beyond _____, until funds are made available to the Contracting Officer for performance and until the Contractor receives notice of availability, to be confirmed in writing by the Contracting Officer.

(End of clause)

52.246-20 Warranty of Services.

(May 2001)

Warranty of Services (May 2001)

(a) *Definition.* "Acceptance," as used in this clause, means the act of an authorized representative of the Government by which the Government assumes for itself, or as an agent of another, ownership of existing and identified supplies, or approves specific services, as partial or complete performance of the contract.

(b) Notwithstanding inspection and acceptance by the Government or any provision concerning the conclusiveness thereof, the Contractor warrants that all services performed under this contract will, at the time of acceptance, be free from defects in workmanship and conform to the requirements of this contract. The Contracting Officer shall give written notice of any defect or nonconformance to the Contractor **within 30 days from the date of acceptance by the Government**. This notice shall state either-

(1) That the Contractor shall correct or reperform any defective or nonconforming services; or

(2) That the Government does not require correction or reperformance.

(c) If the Contractor is required to correct or reperform, it shall be at no cost to the Government, and any services corrected or reperformed by the Contractor shall be subject to this clause to the same extent as work initially performed. If the Contractor fails or refuses to correct or reperform, the Contracting Officer may, by contract or otherwise, correct or replace with similar services and charge to the Contractor the cost occasioned to the Government thereby, or make an equitable adjustment in the contract price.

(d) If the Government does not require correction or reperformance, the Contracting Officer shall make an equitable adjustment in the contract price.

(End of clause)

52.247-63 Preference for U.S.-Flag Air Carriers.

(Jan 2025)

Preference for U.S.-Flag Air Carriers (Jan 2025)

(a) *Definitions.* As used in this clause-

"International air transportation" means transportation by air between a place in the United States and a place outside the United States or between two places both of which are outside the United States.

United States means the 50 States, the District of Columbia, and outlying areas.

U.S.-flag air carrier means an entity granted authority to provide air transportation in the form of a certificate of public convenience and necessity under 49 U.S.C. 41102.

(b) *U.S. Government-financed international air transportation.* 49 U.S.C. 40118, Government-financed air transportation (commonly referred to as the Fly America Act), requires that all Federal agencies and Government contractors and subcontractors use U.S.-flag air carriers for U.S. Government-financed international air transportation of personnel (and their personal effects) or property, to the extent that service by those carriers is available. It requires the General Services Administration to issue regulations that, in the absence of satisfactory proof of the necessity for foreign-flag air transportation, disallow expenditures from funds, appropriated or otherwise established for the account of the United States, for international air transportation secured aboard a foreign-flag air carrier if a U.S.-flag air carrier is available to provide such services.

(c) *Use of U.S.-flag carriers for international air transportation.* If available, the Contractor, in performing work under this contract, shall use U.S.-flag carriers for international air transportation of personnel (and their personal effects) or property.

(d) *Statement of unavailability of U.S.-flag air carriers. Use of U.S.-flag carriers for international air transportation.* In the event that the Contractor selects a carrier other than a U.S.-flag air carrier for international air transportation, the Contractor shall include a statement on vouchers involving such transportation essentially as follows:

Statement of Unavailability of U.S.-Flag Air Carriers

International air transportation of persons (and their personal effects) or property by U.S.-flag air carrier was not available or it was necessary to use foreign-flag air carrier service for the following reasons (see section 47.403 of the Federal Acquisition Regulation): _____ **[State reasons]:**

(End of statement)

(e) *Subcontracts.* The Contractor shall include the substance of this clause, including this paragraph (e), in each subcontract or purchase under this contract that may involve international air transportation.

(End of clause)

52.248-1 Value Engineering.

(Jun 2020)

VALUE ENGINEERING (JUN 2020)

(a) *General.* The Contractor is encouraged to develop, prepare, and submit value engineering change proposals (VECP's) voluntarily. The Contractor shall share in any net acquisition savings realized from accepted VECP's, in accordance with the incentive sharing rates in paragraph (f) of this clause.

(b) *Definitions.*

Acquisition savings, as used in this clause, means savings resulting from the application of a VECP to contracts awarded by the same contracting office or its successor for essentially the same unit. Acquisition savings include-

- (1) Instant contract savings, which are the net cost reductions on this, the instant contract, and which are equal to the instant unit cost reduction multiplied by the number of instant contract units affected by the VECP, less the Contractor's allowable development and implementation costs;
- (2) Concurrent contract savings, which are net reductions in the prices of other contracts that are definitized and ongoing at the time the VECP is accepted; and
- (3) Future contract savings, which are the product of the future unit cost reduction multiplied by the number of future contract units in the sharing base. On an instant contract, future contract savings include savings on increases in quantities after VECP acceptance that are due to contract modifications, exercise of options, additional orders, and funding of subsequent year requirements on a multiyear contract.

Collateral savings, as used in this clause, means those measurable net reductions resulting from a VECP in the agency's overall projected collateral costs, exclusive of acquisition savings, whether or not the acquisition cost changes.

Contracting office includes any contracting office that the acquisition is transferred to, such as another branch of the agency or another agency's office that is performing a joint acquisition action.

Contractor's development and implementation costs, as used in this clause, means those costs the Contractor incurs on a VECP specifically in developing, testing, preparing, and submitting the VECP, as well as those costs the Contractor incurs to make the contractual changes required by Government acceptance of a VECP.

Future unit cost reduction, as used in this clause, means the instant unit cost reduction adjusted as the Contracting Officer considers necessary for projected learning or changes in quantity during the sharing period. It is calculated at the time the VECP is accepted and applies either-

- (1) Throughout the sharing period, unless the Contracting Officer decides that recalculation is necessary because conditions are significantly different from those previously anticipated; or
- (2) To the calculation of a lump-sum payment, which cannot later be revised.

Government costs, as used in this clause, means those agency costs that result directly from developing and implementing the VECP, such as any net increases in the cost of testing, operations, maintenance, and logistics support. The term does not include the normal administrative costs of processing the VECP or any increase in this contract's cost or price resulting from negative instant contract savings.

Instant contract, as used in this clause, means this contract, under which the VECP is submitted. It does not include increases in quantities after acceptance of the VECP that are due to contract modifications, exercise of options, or additional orders. If this is a multiyear contract, the term does not include quantities funded after VECP acceptance. If this contract is a fixed-price contract with prospective price redetermination, the term refers to the period for which firm prices have been established.

Instant unit cost reduction means the amount of the decrease in unit cost of performance (without deducting any Contractor's development or implementation costs) resulting from using the VECP on this, the instant contract. If this is a service contract, the instant unit cost reduction is normally equal to the number of hours per line-item task saved by using the VECP on this contract, multiplied by the appropriate contract labor rate.

Negative instant contract savings means the increase in the cost or price of this contract when the acceptance of a VECP results in an excess of the Contractor's allowable development and implementation costs over the product of the instant unit cost reduction multiplied by the number of instant contract units affected.

Net acquisition savings means total acquisition savings, including instant, concurrent, and future contract savings, less Government costs.

Sharing base, as used in this clause, means the number of affected end items on contracts of the contracting office accepting the VECP.

Sharing period, as used in this clause, means the period beginning with acceptance of the first unit incorporating the VECP and ending at a calendar date or event determined by the contracting officer for each VECP.

Unit, as used in this clause, means the item or task to which the Contracting Officer and the Contractor agree the VECP applies.

Value engineering change proposal (VECP) means a proposal that-

- (1) Requires a change to this, the instant contract, to implement; and
- (2) Results in reducing the overall projected cost to the agency without impairing essential functions or characteristics; *provided*, that it does not involve a change-
 - (i) In deliverable end item quantities only;
 - (ii) In research and development (R&D) end items or R&D test quantities that is due solely to results of previous testing under this contract; or
 - (iii) To the contract type only.

(c) *VECP preparation.* As a minimum, the Contractor shall include in each VECP the information described in paragraphs (c)(1) through (8) of this clause. If the proposed change is affected by contractually required configuration management or similar procedures, the instructions in those procedures relating to format, identification, and priority assignment shall govern VECP preparation. The VECP shall include the following:

- (1) A description of the difference between the existing contract requirement and the proposed requirement, the comparative advantages and disadvantages of each, a justification when an item's function or characteristics are being altered, the effect of the change on the end item's performance, and any pertinent objective test data.
- (2) A list and analysis of the contract requirements that must be changed if the VECP is accepted, including any suggested specification revisions.
- (3) Identification of the unit to which the VECP applies.
- (4) A separate, detailed cost estimate for (i) the affected portions of the existing contract requirement and (ii) the VECP. The cost reduction associated with the VECP shall take into account the Contractor's allowable development and implementation costs, including any amount attributable to subcontracts under the Subcontracts paragraph of this clause.
- (5) A description and estimate of costs the Government may incur in implementing the VECP, such as test and evaluation and operating and support costs.
- (6) A prediction of any effects the proposed change would have on collateral costs to the agency.
- (7) A statement of the time by which a contract modification accepting the VECP must be issued in order to achieve the maximum cost reduction, noting any effect on the contract completion time or delivery schedule.
- (8) Identification of any previous submissions of the VECP, including the dates submitted, the agencies and contract numbers involved, and previous Government actions, if known.

(d) *Submission.* The Contractor shall submit VECP's to the Contracting Officer, unless this contract states otherwise. If this contract is administered by other than the contracting office, the Contractor shall submit a copy of the VECP simultaneously to the Contracting Officer and to the Administrative Contracting Officer.

(e) *Government action.*

(1) The Contracting Officer will notify the Contractor of the status of the VECP within 45 calendar days after the contracting office receives it. If additional time is required, the Contracting Officer will notify the Contractor within the 45-day period and provide the reason for the delay and the expected date of the decision. The Government will process VECP's expeditiously; however, it will not be liable for any delay in acting upon a VECP.

(2) If the VECP is not accepted, the Contracting Officer will notify the Contractor in writing, explaining the reasons for rejection. The Contractor may withdraw any VECP, in whole or in part, at any time before it is accepted by the Government. The Contracting Officer may require that the Contractor provide written notification before undertaking significant expenditures for VECP effort.

(3) Any VECP may be accepted, in whole or in part, by the Contracting Officer's award of a modification to this contract citing this clause and made either before or within a reasonable time after contract performance is completed. Until such a contract modification applies a VECP to this contract, the Contractor shall perform in accordance with the existing contract. The decision to accept or reject all or part of any VECP is a unilateral decision made solely at the discretion of the Contracting Officer.

(f) *Sharing rates.* If a VECP is accepted, the Contractor shall share in net acquisition savings according to the percentages shown in the table below. The percentage paid the Contractor depends upon-

- (1) This contract's type (fixed-price, incentive, or cost-reimbursement);
- (2) The sharing arrangement specified in paragraph (a) of this clause (incentive, program requirement, or a combination as delineated in the Schedule); and
- (3) The source of the savings (the instant contract, or concurrent and future contracts), as follows:

Contractor's Share of Net Acquisition Savings (Figure in Percent)				
Contract Type	Incentive (Voluntary)		Program Requirement (Mandatory)	
	Instant	Concurrent	Instant	Concurrent

	Contract Rate	and Future Contract Rate	Contract Rate	and Future Contract Rate
Fixed-price (includes fixed-price-award-fee; excludes other fixed-price incentive contracts)	*50	*50	25	25
Incentive (fixed-price or cost) (other than award fee)	(**)	*50	(**)	25
Cost-reimbursement (includes cost-plus-award-fee; excludes other cost-type incentive contracts)	***25	***25	15	15
* The Contracting Office may increase the Contractor's sharing rate to as high as 75 percent for each VECP.				
** Same sharing arrangement as the contract's profit or fee adjustment formula.				
*** The Contracting Office may increase the Contractor's sharing rate to as high as 50 percent for each VECP.				

(g) Calculating net acquisition savings.

(1) Acquisition savings are realized when (i) the cost or price is reduced on the instant contract, (ii) reductions are negotiated in concurrent contracts, (iii) future contracts are awarded, or (iv) agreement is reached on a lump-sum payment for future contract savings (see paragraph (i)(4) of this clause). Net acquisition savings are first realized, and the Contractor shall be paid a share, when Government costs and any negative instant contract savings have been fully offset against acquisition savings.

(2) Except in incentive contracts, Government costs and any price or cost increases resulting from negative instant contract savings shall be offset against acquisition savings each time such savings are realized until they are fully offset. Then, the Contractor's share is calculated by multiplying net acquisition savings by the appropriate Contractor's percentage sharing rate (see paragraph (f) of this clause). Additional Contractor shares of net acquisition savings shall be paid to the Contractor at the time realized.

(3) If this is an incentive contract, recovery of Government costs on the instant contract shall be deferred and offset against concurrent and future contract savings. The Contractor shall share through the contract incentive structure in savings on the instant contract items affected. Any negative instant contract savings shall be added to the target cost or to the target price and ceiling price, and the amount shall be offset against concurrent and future contract savings.

(4) If the Government does not receive and accept all items on which it paid the Contractor's share, the Contractor shall reimburse the Government for the proportionate share of these payments.

(h) *Contract adjustment.* The modification accepting the VECP (or a subsequent modification issued as soon as possible after any negotiations are completed) shall-

(1) Reduce the contract price or estimated cost by the amount of instant contract savings, unless this is an incentive contract;

(2) When the amount of instant contract savings is negative, increase the contract price, target price and ceiling price, target cost, or estimated cost by that amount;

(3) Specify the Contractor's dollar share per unit on future contracts, or provide the lump-sum payment;

(4) Specify the amount of any Government costs or negative instant contract savings to be offset in determining net acquisition savings realized from concurrent or future contract savings; and

(5) Provide the Contractor's share of any net acquisition savings under the instant contract in accordance with the following:

(i) Fixed-price contracts-add to contract price.

(ii) Cost-reimbursement contracts-add to contract fee.

(i) Concurrent and future contract savings.

(1) Payments of the Contractor's share of concurrent and future contract savings shall be made by a modification to the instant contract in accordance with paragraph (h)(5) of this clause. For incentive contracts, shares shall be added as a separate firm-fixed-price line item on the instant contract. The Contractor shall maintain records adequate to identify the first delivered unit for 3 years after final payment under this contract.

(2) The Contracting Officer shall calculate the Contractor's share of concurrent contract savings by-

(i) Subtracting from the reduction in price negotiated on the concurrent contract any Government costs or negative instant contract savings not yet offset; and

(ii) Multiplying the result by the Contractor's sharing rate.

(3) The Contracting Officer shall calculate the Contractor's share of future contract savings by-

(i) Multiplying the future unit cost reduction by the number of future contract units scheduled for delivery during the sharing period;

(ii) Subtracting any Government costs or negative instant contract savings not yet offset; and

(iii) Multiplying the result by the Contractor's sharing rate.

(4) When the Government wishes and the Contractor agrees, the Contractor's share of future contract savings may be paid in a single lump sum rather than in a series of payments over time as future contracts are awarded. Under this alternate procedure, the future contract savings may be calculated when the VECP is accepted, on the basis of the Contracting Officer's forecast of the number of units that will be delivered during the sharing period. The Contractor's share shall be included in a modification to this contract (see paragraph (h)(3) of this clause) and shall not be subject to subsequent adjustment.

(5) *Alternate no-cost settlement method.* When, in accordance with section 48.104-4 of the Federal Acquisition Regulation (FAR), the Government and the Contractor mutually agree to use the no-cost settlement method, the following applies:

(i) The Contractor will keep all the savings on the instant contract and on its concurrent contracts only.

(ii) The Government will keep all the savings resulting from concurrent contracts placed on other sources, savings from all future contracts, and all collateral savings.

(j) *Collateral savings.* If a VECP is accepted, the Contracting Officer will increase the instant contract amount, as specified in paragraph (h)(5) of this clause, by a rate from 20 to 100 percent, as determined by the Contracting Officer, of any projected collateral savings determined to be realized in a typical year of use after subtracting any Government costs not previously offset. However, the Contractor's share of collateral savings will not exceed the contract's firm-fixed-price, target price, target cost, or estimated cost, at the time the VECP is accepted, or \$100,000, whichever is greater. The Contracting Officer will be the sole determiner of the amount of collateral savings.

(k) *Relationship to other incentives.* Only those benefits of an accepted VECP not rewardable under performance, design-to-cost (production unit cost, operating and support costs, reliability and maintainability), or similar incentives shall be rewarded under this clause. However, the targets of such incentives affected by the VECP shall not be adjusted because of VECP acceptance. If this contract specifies targets but provides no incentive to surpass them, the value engineering sharing shall apply only to the amount of achievement better than target.

(l) *Subcontracts.* The Contractor shall include an appropriate value engineering clause in any subcontract-valued at or above the simplified acquisition threshold, as defined in FAR 2.101 on the date of subcontract award, and may include one in subcontracts of lesser value. In calculating any adjustment in this contract's price for instant contract savings (or negative instant contract savings), the Contractor's allowable development and implementation costs shall include any subcontractor's allowable development and implementation costs, and any value engineering incentive payments to a subcontractor, clearly resulting from a VECP accepted by the Government under this contract. The Contractor may choose any arrangement for subcontractor value engineering incentive payments, *provided*, that the payments shall not reduce the Government's share of concurrent or future contract savings or collateral savings.

(m) *Data.* The Contractor may restrict the Government's right to use any part of a VECP or the supporting data by marking the following legend on the affected parts:

These data, furnished under the Value Engineering clause of contract _____, shall not be disclosed outside the Government or duplicated, used, or disclosed, in whole or in part, for any purpose other than to evaluate a value engineering change proposal submitted under the clause. This restriction does not limit the Government's right to use information contained in these data if it has been obtained or is otherwise available from the Contractor or from another source without limitations.

If a VECP is accepted, the Contractor hereby grants the Government unlimited rights in the VECP and supporting data, except that, with respect to data qualifying and submitted as limited rights technical data, the Government shall have the rights specified in the contract modification implementing the VECP and shall appropriately mark the data. (The terms "unlimited rights" and "limited rights" are defined in part 27 of the Federal Acquisition Regulation.)

(End of clause)

52.252-2 Clauses Incorporated by Reference.

(Feb 1998)

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

FAR: <https://www.acquisition.gov/browsefar>

DFARS: <https://www.acq.osd.mil/dpap/dars/dfarspgi/current>

NMCARS: <http://www.secnav.navy.mil/rda/Pages/NMCARS.aspx>

(End of clause)

52.252-6 Authorized Deviations in Clauses.

(Nov 2020)

Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any **Defense Federal Acquisition Regulation Supplement (DFARS) (48 CFR Chapter 2)** clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

DFARS Clauses Incorporated by Full Text

252.217-7027 Contract Definitization.

(May 2023)

CONTRACT DEFINITIZATION (MAY 2023)

(a) An **Indefinite-Delivery/Indefinite Quantity (IDIQ) Firm-Fixed Priced (FFP), performance-based type contract for BOS Services at NAS Sigonella, Italy that is comprised of both Recurring Work and Non-Recurring Work items is contemplated.** The Contractor agrees to begin promptly negotiating with the Contracting Officer the terms of a definitive contract that will include-

- (1) All clauses required by the Federal Acquisition Regulation (FAR) on the date of execution of the undefinitized contract action;
- (2) All clauses required by law on the date of execution of the definitive contract action; and
- (3) Any other mutually agreeable clauses, terms, and conditions.

(b) The Contractor agrees to submit a **fixed-price** proposal and certified cost or pricing data supporting its proposal. Notwithstanding FAR 52.216-26, Payments of Allowable Costs Before Definitization, failure to meet the qualifying proposal date in the contract definitization schedule could result in the Contracting Officer withholding an amount up to 5 percent of all subsequent requests for financing until the Contracting Officer determines that a proposal is qualifying.

(c) The schedule for definitizing this contract action is as follows *[insert target date for definitization of the contract action and dates for submission of proposal, beginning of negotiations, and, if appropriate, submission of the make-or-buy and subcontracting plans and certified cost or pricing data]*:

(d) If agreement on a definitive contract action to supersede this undefinitized contract action is not reached by the target date in paragraph (c) of this clause, or within any extension of it granted by the Contracting Officer, the Contracting Officer may, with the approval of the head of the contracting activity, determine a reasonable price or fee in accordance with FAR subpart 15.4 and part 31, subject to Contractor appeal as provided in the Disputes clause. In any event, the Contractor shall proceed with completion of the contract, subject only to the Limitation of Government Liability clause.

(1) After the Contracting Officer's determination of price or fee, the contract shall be governed by-

(i) All clauses required by the FAR on the date of execution of this undefinitized contract action for either fixed-price or cost-reimbursement contracts, as determined by the Contracting Officer under this paragraph (e);

(ii) All clauses required by law as of the date of the Contracting Officer's determination; and

(iii) Any other clauses, terms, and conditions mutually agreed upon.

(2) To the extent consistent with paragraph (d)(1) of this clause, all clauses, terms, and conditions included in this undefinitized contract action shall continue in effect, except those that by their nature apply only to an undefinitized contract action.

(e) The definitive contract resulting from this undefinitized contract action will include a negotiated ____ *[insert "cost/price ceiling" or "firm-fixed price"]* in no event to exceed ____ *[insert the not-to-exceed amount]*.

(End of clause)

252.223-7001 Hazard Warning Labels.

(Dec 1991)

HAZARD WARNING LABELS (DEC 1991)

(a) "Hazardous material," as used in this clause, is defined in the Hazardous Material Identification and Material Safety Data clause of this contract.

(b) The Contractor shall label the item package (unit container) of any hazardous material to be delivered under this contract in accordance with the Hazard Communication Standard (29 CFR 1910.1200 et seq). The Standard requires that the hazard warning label conform to the requirements of the standard unless the material is otherwise subject to the labelling requirements of one of the following statutes:

(1) Federal Insecticide, Fungicide and Rodenticide Act;

(2) Federal Food, Drug and Cosmetics Act;

(3) Consumer Product Safety Act;

(4) Federal Hazardous Substances Act; or

(5) Federal Alcohol Administration Act.

(c) The Offeror shall list which hazardous material listed in the Hazardous Material Identification and Material Safety Data clause of this contract will be labelled in accordance with one of the Acts in paragraphs (b)(1) through (5) of this clause instead of the Hazard Communication Standard. Any hazardous material not listed will be interpreted to mean that a label is required in accordance with the Hazard Communication Standard.

MATERIAL (If None, Insert "None.")	ACT

(d) The apparently successful Offeror agrees to submit, before award, a copy of the hazard warning label for all hazardous materials not listed in paragraph (c) of this clause. The Offeror shall submit the label with the Material Safety Data Sheet being furnished under the Hazardous Material Identification and Material Safety Data clause of this contract.

(e) The Contractor shall also comply with MIL-STD-129, Marking for Shipment and Storage (including revisions adopted during the term of this contract).

(End of clause)

252.225-7043 Antiterrorism/Force Protection for Defense Contractors Outside the United States. (Jun 2015)

ANTITERRORISM/FORCE PROTECTION POLICY FOR DEFENSE CONTRACTORS OUTSIDE THE UNITED STATES (JUN 2015)

(a) *Definition.* " United States ," as used in this clause, means, the 50 States, the District of Columbia , and outlying areas.

(b) Except as provided in paragraph (c) of this clause, the Contractor and its subcontractors, if performing or traveling outside the United States under this contract, shall-

(1) Affiliate with the Overseas Security Advisory Council, if the Contractor or subcontractor is a U.S. entity;

(2) Ensure that Contractor and subcontractor personnel who are U.S. nationals and are in-country on a non-transitory basis, register with the U.S. Embassy, and that Contractor and subcontractor personnel who are third country nationals comply with any security related requirements of the Embassy of their nationality;

(3) Provide, to Contractor and subcontractor personnel, antiterrorism/force protection awareness information commensurate with that which the Department of Defense (DoD) provides to its military and civilian personnel and their families, to the extent such information can be made available prior to travel outside the United States; and

(4) Obtain and comply with the most current antiterrorism/force protection guidance for Contractor and subcontractor personnel.

(c) The requirements of this clause do not apply to any subcontractor that is-

(1) A foreign government;

(2) A representative of a foreign government; or

(3) A foreign corporation wholly owned by a foreign government.

(d) Information and guidance pertaining to DoD antiterrorism/force protection can be obtained from **Naval Criminal Investigative Service (NCIS), Code 21; telephone, DSN 288-9077 or commercial (202) 433-9077.**

(End of clause)

252.229-7001 Tax Relief.

(Apr 2020)

TAX RELIEF-BASIC (APR 2020)

(a) Prices set forth in this contract are exclusive of all taxes and duties from which the United States Government is exempt by virtue of tax agreements between the United States Government and the Contractor's government. The following taxes or duties have been excluded from the contract price:

NAME OF TAX: <u>(Offeror insert)</u>	RATE (PERCENTAGE): <u>(Offeror insert)</u>
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(b) Invoices submitted in accordance with the terms and conditions of this contract shall be exclusive of all taxes or duties for which relief is available. The Contractor's invoice shall list separately the gross price, amount of tax deducted, and net price charged.

(c) When items manufactured to United States Government specifications are being acquired, the Contractor shall identify the materials or components intended to be imported in order to ensure that relief from import duties is obtained. If the Contractor intends to use imported products from inventories on hand, the price of which includes a factor for import duties, the Contractor shall ensure the United States Government's exemption from these taxes. The Contractor may obtain a refund of the import duties from its government or request the duty-free import of an amount of supplies or components corresponding to that used from inventory for this contract.

(End of clause)

252.232-7007 Limitation of Government's Obligation.**(Apr 2014)****LIMITATION OF GOVERNMENT'S OBLIGATION (APR 2014)**

(a) Contract line item(s) [Contracting Officer insert after negotiations] is/are incrementally funded. For this/these item(s), the sum of \$ [Contracting Officer insert after negotiations] of the total price is presently available for payment and allotted to this contract. An allotment schedule is set forth in paragraph (j) of this clause.

(b) For item(s) identified in paragraph (a) of this clause, the Contractor agrees to perform up to the point at which the total amount payable by the Government, including reimbursement in the event of termination of those item(s) for the Government's convenience, approximates the total amount currently allotted to the contract. The Contractor is not authorized to continue work on those item(s) beyond that point. The Government will not be obligated in any event to reimburse the Contractor in excess of the amount allotted to the contract for those item(s) regardless of anything to the contrary in the clause entitled "Termination for Convenience of the Government." As used in this clause, the total amount payable by the Government in the event of termination of applicable contract line item(s) for convenience includes costs, profit, and estimated termination settlement costs for those item(s).

(c) Notwithstanding the dates specified in the allotment schedule in paragraph (j) of this clause, the Contractor will notify the Contracting Officer in writing at least ninety days prior to the date when, in the Contractor's best judgment, the work will reach the point at which the total amount payable by the Government, including any cost for termination for convenience, will approximate 85 percent of the total amount then allotted to the contract for performance of the applicable item(s). The notification will state (1) the estimated date when that point will be reached and (2) an estimate of additional funding, if any, needed to continue performance of applicable line items up to the next scheduled date for allotment of funds identified in paragraph (j) of this clause, or to a mutually agreed upon substitute date. The notification will also advise the Contracting Officer of the estimated amount of additional funds that will be required for the timely performance of the item(s) funded pursuant to this clause, for a subsequent period as may be specified in the allotment schedule in paragraph (j) of this clause or otherwise agreed to by the parties. If after such notification additional funds are not allotted by the date identified in the Contractor's notification, or by an agreed substitute date, the Contracting Officer will terminate any item(s) for which additional funds have not been allotted, pursuant to the clause of this contract entitled "Termination for Convenience of the Government."

(d) When additional funds are allotted for continued performance of the contract line item(s) identified in paragraph (a) of this clause, the parties will agree as to the period of contract performance which will be covered by the funds. The provisions of paragraphs (b) through (d) of this clause will apply in like manner to the additional allotted funds and agreed substitute date, and the contract will be modified accordingly.

(e) If, solely by reason of failure of the Government to allot additional funds, by the dates indicated below, in amounts sufficient for timely performance of the contract line item(s) identified in paragraph (a) of this clause, the Contractor incurs additional costs or is delayed in the performance of the work under this contract and if additional funds are allotted, an equitable adjustment will be made in the price or prices (including appropriate target, billing, and ceiling prices where applicable) of the item(s), or in the time of delivery, or both. Failure to agree to any such equitable adjustment hereunder will be a dispute concerning a question of fact within the meaning of the clause entitled "Disputes."

(f) The Government may at any time prior to termination allot additional funds for the performance of the contract line item(s) identified in paragraph (a) of this clause.

(g) The termination provisions of this clause do not limit the rights of the Government under the clause entitled "Default." The provisions of this clause are limited to the work and allotment of funds for the contract line item(s) set forth in paragraph (a) of this clause. This clause no longer applies once the contract is fully funded except with regard to the rights or obligations of the parties concerning equitable adjustments negotiated under paragraphs (d) and (e) of this clause.

(h) Nothing in this clause affects the right of the Government to terminate this contract pursuant to the clause of this contract entitled "Termination for Convenience of the Government."

(i) Nothing in this clause shall be construed as authorization of voluntary services whose acceptance is otherwise prohibited under 31 U.S.C. 1342.

(j) The parties contemplate that the Government will allot funds to this contract in accordance with the following schedule:

On execution of contract	\$ ____	\$ ____	\$ ____
(month) (day), (year)	\$ ____	\$ ____	\$ ____
(month) (day), (year)	\$ ____	\$ ____	\$ ____

(month) (day), (year)	\$ ____	\$ ____	\$ ____
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(End of clause)

252.251-7000 Ordering From Government Supply Sources.**(Aug 2012)****ORDERING FROM GOVERNMENT SUPPLY SOURCES (AUG 2012)**

(a) When placing orders under Federal Supply Schedules, Personal Property Rehabilitation Price Schedules, or Enterprise Software Agreements, the Contractor shall follow the terms of the applicable schedule or agreement and authorization. Include in each order:

(1) A copy of the authorization (unless a copy was previously furnished to the Federal Supply Schedule, Personal Property Rehabilitation Price Schedule, or Enterprise Software Agreement contractor).

(2) The following statement:

Any price reductions negotiated as part of an Enterprise Software Agreement issued under a Federal Supply Schedule contract shall control. In the event of any other inconsistencies between an Enterprise Software Agreement, established as a Federal Supply Schedule blanket purchase agreement, and the Federal Supply Schedule contract, the latter shall govern.

(3) The completed address(es) to which the Contractor's mail, freight, and billing documents are to be directed.

(b) When placing orders under nonmandatory schedule contracts and requirements contracts, issued by the General Services Administration (GSA) Office of Information Resources Management, for automated data processing equipment, software and maintenance, communications equipment and supplies, and teleprocessing services, the Contractor shall follow the terms of the applicable contract and the procedures in paragraph (a) of this clause.

(c) When placing orders for Government stock on a reimbursable basis, the Contractor shall-

(1) Comply with the requirements of the Contracting Officer's authorization, using FEDSTRIP or MILSTRIP procedures, as appropriate;

(2) Use only the GSA Form 1948-A, Retail Services Shopping Plate, when ordering from GSA Self-Service Stores;

(3) Order only those items required in the performance of Government contracts; and

(4) Pay invoices from Government supply sources promptly. For purchases made from DoD supply sources, this means within 30 days of the date of a proper invoice. The Contractor shall annotate each invoice with the date of receipt. For purposes of computing interest for late Contractor payments, the Government's invoice is deemed to be a demand for payment in accordance with the Interest clause of this contract. The Contractor's failure to pay may also result in the DoD supply source refusing to honor the requisition (see DFARS 251.102(f)) or in the Contracting Officer terminating the Contractor's authorization to use DoD supply sources. In the event the Contracting Officer decides to terminate the authorization due to the Contractor's failure to pay in a timely manner, the Contracting Officer shall provide the Contractor with prompt written notice of the intent to terminate the authorization and the basis for such action. The Contractor shall have 10 days after receipt of the Government's notice in which to provide additional information as to why the authorization should not be terminated. The termination shall not provide the Contractor with an excusable delay for failure to perform or complete the contract in accordance with the terms of the contract, and the Contractor shall be solely responsible for any increased costs.

(d) When placing orders for Government stock on a non-reimbursable basis, the Contractor shall-

(1) Comply with the requirements of the Contracting Officer's authorization; and

(2) When using electronic transactions to submit requisitions on a non-reimbursable basis only, place orders by authorizing contract number using the Defense Logistics Management System (DLMS) Supplement to Federal Implementation Convention 511R, Requisition; and acknowledge receipts by authorizing contract number using the DLMS Supplement 527R, Receipt, Inquiry, Response and Material Receipt Acknowledgement.

(e) Only the Contractor may request authorization for subcontractor use of Government supply sources. The Contracting Officer will not grant authorizations for subcontractor use without approval of the Contractor.

(f) Government invoices shall be submitted to the Contractor's billing address, and Contractor payments shall be sent to the Government remittance address specified below:

Contractor's Billing Address (include point of contact and telephone number):

Government Remittance Address (include point of contact and telephone number):

(End of clause)

Section J - List of Attachments

NOTE: The individual files for Section J are attached separately. Note: The documents are provided as separate documents under "attachments/links" section on Contract Opportunities under the solicitation number.

This Contract incorporates by reference the following attachments as if they were fully set forth herein. Please see the following attachments as part of this solicitation:

Attachments are in PDF Format unless otherwise indicated

<u>ATTACHMENT NUMBER</u>	<u>ATTACHMENT TITLE</u>
Attachment F	Section F Deliverables
J-1	Past Performance Questionnaires (PPQs)
J-2	Corporate Experience Project Data Sheet
J-3	Section B Supplies or Services and Prices
J-4	Pre-Award Inquiry Form (Excel)
J-5	Pre-Proposal Site Visit Sigonella
J-6	Site Visit Log NAS Sigonella
J-7	Comunicazione Antimafia self-certification form
J-8	Informazione Antimafia self-certification form
J-9	{RESERVED}
J-10	{RESERVED}
J-11	{RESERVED}
J-0200000	Management and Administration (J-0200000-01 through J-0200000-04; J-0200000-07 through J-0200000-09; J-0200000-12)
J-0200000-05	SERVICE PROVIDER INFORMATION (Excel)

J-0200000-06	ASSET INFORMATION (Excel)
J-0200000-06.a	ASSET SPECIFICATION (Excel)
J-0200000-10	Oil and Hazardous Substance Spill Response Procedures
J-0200000-11	Disaster Exercise Support Requirements
J-0200000-12	EXHIBIT LINE ITEM NUMBERS (ELINS)
J-1401000	Family Housing (J-1401000-01 through J-1401000-07; J-1401000-09)
J-1401000-08	Family Housing Change of Occupancy Checklist (Excel)
J-1402000	Unaccompanied Housing (J-1402000-01 through J-1402000-04)
J-1402000-05	Checklist for Mold Remediation
J-1501000	Facility Management (J-1501000-01 through J-1501000-03)
J-1502000	Facility Investment (J-1502000-01 through J-1502000-02)
J-1502000-03	Facilities Description (Excel)
J-1502000-04	Critical Areas Requiring ICRA
J-1502000-05	Anticipated E_U_R Work Orders
J-1502000-06	DEFENSE HEALTH AGENCY SYSTEMS DESCRIPTION (Excel)
J-1502000-07	BASE SYSTEMS DESCRIPTION (Excel)
J-1502000-07.a	POL Fuel Depot Equipment Description (Excel)
J-1502000-07.b	Critical Spare Parts List (Excel)
J-1502000-07.c	Aviation Fuel Systems Equipment Description (Excel)
J-1502000-07.d	Vehicle Fueling Station Equipment Description (Excel)
J-1502000-07.e	Periodic Inspections and Maintenance Actions

J-1502000-07.f	Ufc_3_460_03_2017_c2
J-1502000-08.a	Monthly and Yearly Checklist for AST - DHA
J-1502000-08.b	Monthly UST Checklist - DHA
J-1502000-08.c	Yearly UST Checklist - DHA
J-1503010	Custodial
J-1503010-06.a	Custodial Inventory and Frequencies (Excel)
J-1503010-06.b	Custodial Inventory and Frequencies (Excel)
J-1503020	Pest Control (J-1503020-01 through J-1503020-03; J-1503020-05 through J-1503020-15)
J-1503020-04	Sigonella IPMP
J-1503030	Integrated Solid Waste Management (J-1503030-01 through J-1503030-03; J-1503030-07 through J-1503030-08)
J-1503030-04	Solid Waste Collection Pick-Up Points Maps
J-1503030-05	Solid Waste Disposal Historical Data (Excel)
J-1503030-06	Solid Waste Containers Inventory (Excel)
J-1503050	Grounds Maintenance and Landscaping (J-1503050-01; J-1503050-03 through J-1503050-05)
J-1503050-02.a	Site Maps
J-1503050-02.b	Eucalyptus Trees Inventory (Excel)
J-1503050-06	BASH Requirements and Site Map
J-1503050-07	NASSIG WHA
J-1503050-08	Exterior Containers Inventory (Excel)
J-1503060	Pavement Clearance
J-1601000	Utility Management (J-1601000-01 through J-1601000-02; J-1601000-05 through J-1601000-07; J-1601000-09)

J-1601000-03	Annual Utility Service Order Workload
J-1601000-04	Utility Map Attributes (Excel)
J-1601000-08	Utility Asset Inventory (Excel)
J-1602000	Electrical (J-1602000-01 through J-1602000-02; J-1602000-04)
J-1602000-03	Electrical Power Transmission and Distribution Systems Description (Excel)
J-1603000	Natural Gas (J-1603000-01 through J-1603000-02)
J-1603000-03	Natural Gas Distribution System Description (Excel)
J-1603000-04	Critical Spare Parts Inventory (Excel)
J-1604000	Wastewater (J-1604000-01 through J-1604000-02; J-1604000-04)
J-1604000-03	Wastewater Systems Description and Inventory (Excel)
J-1606001	Water (Overseas) (J-1606001-01 through J-1606001-03; J-1606001-05)
J-1606001-04	Historical Critical Spare Parts Inventory (Excel)
J-1606001-06	Unidirectional Flushing Plan NAS I
J-1606001-07	Unidirectional Flushing Plan NAS II
J-1700000	Transportation (J-1700000-01 through J-1700000-02)
J-1700000-03	Shuttle Bus Schedule (Excel)
J-1700000-04	Bus Stops Maps
J-1700000-05	Shuttle Bus Services Satisfaction Survey Sample
J-1800000	Environmental

Attachments:

Number	Attachment Name	Attachment Description	Reference Identifier	Date
01	Annex 0100000 General Information	Performance Work Statement		28 Aug 2025
02	Annex 0200000 Management and Administration	Performance Work Statement		05 Sep 2025
03	Annex 1401000 Family Housing	Performance Work Statement		05 Sep 2025
04	Annex 1402000 Unaccompanied Housing	Performance Work Statement		05 Sep 2025
05	Annex 1501000 Facility Management	Performance Work Statement		05 Sep 2025
06	Annex 1502000 Facility Investment	Performance Work Statement		05 Sep 2025
07	Annex 1503010 Custodial	Performance Work Statement		05 Sep 2025
08	Annex 1503020 Pest Control	Performance Work Statement		05 Sep 2025
09	Annex 1503030 Integrated Solid Waste Management	Performance Work Statement		05 Sep 2025
10	Annex 1503050 Grounds Maintenance and Landscaping	Performance Work Statement		05 Sep 2025
11	Annex 1503060 Pavement Clearance	Performance Work Statement		05 Sep 2025
12	Annex 1601000 Utility Management	Performance Work Statement		05 Sep 2025
13	Annex 1602000 Electrical	Performance Work Statement		05 Sep 2025
14	Annex 1603000 Natural Gas	Performance Work Statement		05 Sep 2025
	Annex 1604000			05 Sep

15	Wastewater	Performance Work Statement		2025
16	Annex 1606001 Water (Overseas)	Performance Work Statement		05 Sep 2025
17	Annex 1700000 Transportation	Performance Work Statement		05 Sep 2025
18	Annex 1800000 Environmental	Performance Work Statement		05 Sep 2025

Section K - Representations, Certification, & Other Statements

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-11	Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions.	Sep 2024		
52.204-24	Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment.	Nov 2021		
52.204-26	Covered Telecommunications Equipment or Services-Representation.	Oct 2020		
52.209-5	Certification Regarding Responsibility Matters.	Aug 2020		
52.209-7	Information Regarding Responsibility Matters.	Oct 2018		
52.209-13	Violation of Arms Control Treaties or Agreements-Certification.	Nov 2021		
52.225-25	Prohibition on Contracting With Entities Engaging in Certain Activities or Transactions Relating to Iran-Representation and Certifications.	Jun 2020		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	Sep 2022		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	Oct 2016		
252.204-7016	Covered Defense Telecommunications Equipment or Services-Representation.	Dec 2019		
252.204-7017	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation.	May 2021		
252.225-7031	Secondary Arab Boycott of Israel .	Jun 2005		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	May 2022		
252.225-7057	Preaward Disclosure of Employment of Individuals Who Work in the People's Republic of China.	Aug 2022		
252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation.	Jun 2023		

FAR Clauses Incorporated by Full Text

52.204-8 Annual Representations and Certifications. (Jan 2025)

Annual Representations and Certifications (Jan 2025)

(a)

(1) The North American Industry Classification System (NAICS) code for this acquisition is 561210.

(2) The small business size standard is \$47,000,000.

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519 if the acquisition-

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(b)

(1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (d) of this provision applies.

(2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (d) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

(i) ☐ Paragraph (d) applies.

(ii) ☐ Paragraph (d) does not apply and the offeror has completed the individual representations and certifications in the solicitation.

(c)

(1) The following representations or certifications in SAM are applicable to this solicitation as indicated:

(i) 52.203-2, Certificate of Independent Price Determination. This provision applies to solicitations when a firm-fixed-price contract or fixed-price contract with economic price adjustment is contemplated, unless-

(A) The acquisition is to be made under the simplified acquisition procedures in part 13;

(B) The solicitation is a request for technical proposals under two-step sealed bidding procedures; or

(C) The solicitation is for utility services for which rates are set by law or regulation.

(ii) 52.203-11, Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions. This provision applies to solicitations expected to exceed \$150,000.

(iii) 52.203-18, Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation. This provision applies to all solicitations.

(iv) 52.204-3, Taxpayer Identification. This provision applies to solicitations that do not include the provision at 52.204-7, System for Award Management.

(v) 52.204-5, Women-Owned Business (Other Than Small Business). This provision applies to solicitations that-

(A) Are not set aside for small business concerns;

(B) Exceed the simplified acquisition threshold; and

(C) Are for contracts that will be performed in the United States or its outlying areas.

(vi) 52.204-26, Covered Telecommunications Equipment or Services-Representation. This provision applies to all solicitations.

(vii) 52.209-2, Prohibition on Contracting with Inverted Domestic Corporations-Representation.

(viii) 52.209-5, Certification Regarding Responsibility Matters. This provision applies to solicitations where the contract value is expected to exceed the simplified acquisition threshold.

(ix) 52.209-11, Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. This provision applies to all solicitations.

(x) 52.214-14, Place of Performance-Sealed Bidding. This provision applies to invitations for bids except those in which the place of performance is specified by the Government.

(xi) 52.215-6, Place of Performance. This provision applies to solicitations unless the place of performance is specified by the Government.

(xii) 52.219-1, Small Business Program Representations (Basic, Alternates I, and II). This provision applies to solicitations when the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).

(A) The basic provision applies when the solicitations are issued by other than DoD, NASA, and the Coast Guard.

(B) The provision with its Alternate I applies to solicitations issued by DoD, NASA, or the Coast Guard.

(C) The provision with its Alternate II applies to solicitations that will result in a multiple-award contract with more than one NAICS code assigned.

(xiii) 52.219-2, Equal Low Bids. This provision applies to solicitations when contracting by sealed bidding and the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).

(xiv) 52.222-22, Previous Contracts and Compliance Reports. This provision applies to solicitations that include the clause at 52.222-26, Equal Opportunity.

(xv) 52.222-25, Affirmative Action Compliance. This provision applies to solicitations, other than those for construction, when the solicitation includes the clause at 52.222-26, Equal Opportunity.

(xvi) 52.222-38, Compliance with Veterans' Employment Reporting Requirements. This provision applies to solicitations when it is anticipated the contract award will exceed the simplified acquisition threshold and the contract is not for acquisition of commercial products or commercial services.

(xvii) 52.223-1, Biobased Product Certification. This provision applies to solicitations that require the delivery or specify the use of biobased products in USDA-designated product categories; or include the clause at 52.223-2, Reporting of Biobased Products Under Service and Construction Contracts.

(xviii) 52.223-4, Recovered Material Certification. This provision applies to solicitations that are for, or specify the use of, EPA-designated items.

(xix) 52.223-22, Public Disclosure of Greenhouse Gas Emissions and Reduction Goals-Representation. This provision applies to solicitations that include the provision at 52.204-7.

(xx) 52.225-2, Buy American Certificate. This provision applies to solicitations containing the clause at 52.225-1.

(xxi) 52.225-4, Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Basic, Alternates II and III.) This provision applies to solicitations containing the clause at 52.225-3.

(A) If the acquisition value is less than \$50,000, the basic provision applies.

(B) If the acquisition value is \$50,000 or more but is less than \$100,000, the provision with its Alternate II applies.

(C) If the acquisition value is \$100,000 or more but is less than \$102,280, the provision with its Alternate III applies.

(xxii) 52.225-6, Trade Agreements Certificate. This provision applies to solicitations containing the clause at 52.225-5.

(xxiii) 52.225-20, Prohibition on Conducting Restricted Business Operations in Sudan-Certification. This provision applies to all solicitations.

(xxiv) 52.225-25, Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran-Representation and Certifications. This provision applies to all solicitations.

(xxv) 52.226-2, Historically Black College or University and Minority Institution Representation. This provision applies to solicitations for research, studies, supplies, or services of the type normally acquired from higher educational institutions.

(2) The following representations or certifications are applicable as indicated by the Contracting Officer:

[Contracting Officer check as appropriate.]

X (i) 52.204-17, Ownership or Control of Offeror.

X (ii) 52.204-20, Predecessor of Offeror.

[] (iii) 52.222-18, Certification Regarding Knowledge of Child Labor for Listed End Products.

[] (iv) 52.222-48, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment- Certification.

[] (v) 52.222-52, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Certification.

[] (vi) 52.227-6, Royalty Information.

[] (A) Basic.

[] (B) Alternate I.

[] (vii) 52.227-15, Representation of Limited Rights Data and Restricted Computer Software.

(d) The offeror has completed the annual representations and certifications electronically in SAM website accessed through <https://www.sam.gov>. After reviewing the SAM information, the offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in paragraph (c) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [offeror to insert changes, identifying change by clause number, title, date]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR Clause #	Title	Date	Change

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted on SAM.

(End of provision)

52.204-29 Federal Acquisition Supply Chain Security Act Orders-Representation and Disclosures. (Dec 2023)**FEDERAL ACQUISITION SUPPLY CHAIN SECURITY ACT ORDERS-REPRESENTATION AND DISCLOSURES (DEC 2023)**

(a) *Definitions.* As used in this provision, *Covered article*, *FASCSA order*, *Intelligence community*, *National security system*, *Reasonable inquiry*, *Sensitive compartmented information*, *Sensitive compartmented information system*, and *Source* have the meaning provided in the clause 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition.

(b) *Prohibition.* Contractors are prohibited from providing or using as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the prohibition is set out in an applicable Federal Acquisition Supply Chain Security Act (FASCSA) order, as described in paragraph (b)(1) of FAR 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition.

(c) *Procedures.*

(1) The Offeror shall search for the phrase "FASCSA order" in the System for Award Management (SAM)(<https://www.sam.gov>) for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (b)(1) of FAR 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition.

(2) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM, but are effective and do apply to the solicitation and resultant contract (see FAR 4.2303(c)(2)).

(3) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation.

(d) *Representation.* By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the solicitation was issued, except as waived by the solicitation, or as disclosed in paragraph (e).

(e) *Disclosures.* The purpose for this disclosure is so the Government may decide whether to issue a waiver. For any covered article, or any products or services produced or provided by a source, if the covered article or the source is subject to an applicable FASCSA order, and the Offeror is unable to represent compliance, then the Offeror shall provide the following information as part of the offer:

(1) Name of the product or service provided to the Government;

(2) Name of the covered article or source subject to a FASCSA order;

(3) If applicable, name of the vendor, including the Commercial and Government Entity code and unique entity identifier (if known), that supplied the covered article or the product or service to the Offeror;

(4) Brand;

(5) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);

(6) Item description;

(7) Reason why the applicable covered article or the product or service is being provided or used;

(f) *Executive agency review of disclosures.* The contracting officer will review disclosures provided in paragraph (e) to determine if any waiver may be sought. A contracting officer may choose not to pursue a waiver for covered articles or sources otherwise subject to a FASCSA order and may instead make an award to an offeror that does not require a waiver.

(End of provision)

DFARS Clauses Incorporated by Full Text**252.204-7007 Alternate A, Annual Representations and Certifications.****(Oct 2024) Alternate A (Oct 2024)****ALTERNATE A, ANNUAL REPRESENTATIONS AND CERTIFICATIONS (OCT 2024)**

Substitute the following paragraphs (b), (d), and (e) for paragraphs (b) and (d) of the provision at FAR 52.204-8:

(b)(1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (e) of this provision applies.

(2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (e) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

☐ (i) Paragraph (e) applies.

☐ (ii) Paragraph (e) does not apply and the Offeror has completed the individual representations and certifications in the solicitation.

(d)(1) The following representations or certifications in the SAM database are applicable to this solicitation as indicated:

(i) 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation. Applies to all solicitations.

(ii) 252.216-7008, Economic Price Adjustment-Wage Rates or Material Prices Controlled by a Foreign Government. Applies to solicitations for fixed-price supply and service contracts when the contract is to be performed wholly or in part in a foreign country, and a foreign government controls wage rates or material prices and may during contract performance impose a mandatory change in wages or prices of materials.

(iii) 252.225-7042, Authorization to Perform. Applies to all solicitations when performance will be wholly or in part in a foreign country.

(iv) 252.225-7049, Prohibition on Acquisition of Certain Foreign Commercial Satellite Services-Representations. Applies to solicitations for the acquisition of commercial satellite services.

(v) 252.225-7050, Disclosure of Ownership or Control by the Government of a Country that is a State Sponsor of Terrorism. Applies to all solicitations expected to result in contracts of \$150,000 or more.

(vi) 252.229-7012, Tax Exemptions (Italy)-Representation. Applies to solicitations and contracts when contract performance will be in Italy.

(vii) 252.229-7013, Tax Exemptions (Spain)-Representation. Applies to solicitations and contracts when contract performance will be in Spain.

(2) The following representations or certifications in SAM are applicable to this solicitation as indicated by the Contracting Officer:

[Contracting Officer check as appropriate.]

☒ (i) 252.209-7002, Disclosure of Ownership or Control by a Foreign Government.

☐ (ii) 252.225-7000, Buy American-Balance of Payments Program Certificate.

☐ (iii) 252.225-7020, Trade Agreements Certificate.

☐ Use with Alternate I.

☐ (iv) 252.225-7031, Secondary Arab Boycott of Israel.

☐ (v) 252.225-7035, Buy American-Free Trade Agreements-Balance of Payments Program Certificate.

☐ Use with Alternate I.

☐ Use with Alternate II.

☐ Use with Alternate III.

☐ Use with Alternate IV.

☐ Use with Alternate V.

☐ (vi) 252.226-7002, Representation for Demonstration Project for Contractors Employing Persons with Disabilities.

☐ (vii) 252.232-7015, Performance-Based Payments-Representation.

(e) The Offeror has completed the annual representations and certifications electronically via the SAM website at <https://www.sam.gov>. After reviewing the SAM database information, the Offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in FAR 52.204-8(c) and paragraph (d) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer, and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below *[Offeror to insert changes, identifying change by provision number, title, date]*. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR/DFARS Provision #	Title	Date	Change
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Any changes provided by the Offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications located in the SAM database.

(End of provision)

Section L - Instructions, Conditions, & Notices to Offerors or Quoters

L1 SUBMITTING YOUR PROPOSAL

Proposals are to be submitted via the PIEE Solicitation Module. Hard copy delivery or facsimile submission will not be accepted.

Submission, modification, revision and withdrawal of proposals shall be via the Procurement Integrated Enterprise Environment (PIEE) Solicitation Module at <https://piee.eb.mil>. SF-330 files received after the proposal due date and time will not be considered. It is the firm's responsibility to confirm that their SF-330 files are received by the date and time posted in the solicitation and all associated amendments. The Government will not be responsible for any failure of receipt of the proposal or any failure of the firm to verify receipt of their submittal. The electronic copies of the proposal shall be submitted in a format readable by Microsoft (MS) Word 2016, Adobe Acrobat, or MS Excel 2016. Please note that any submissions by any other method in place of the PIEE Solicitation Module WILL NOT be accepted and will not be evaluated. In order to submit your proposal on the PIEE Solicitation Portal, firms will first need to register for the PIEE 'Contract Administrator' role. For step-by-step instructions, see "Vendors - Getting Access Help" at: <https://piee.eb.mil/xhtml/unauth/web/homepage/vendorGettingStartedHelp.xhtml>.

Firms are further encouraged to contact the PIEE Helpdesk at 1-866-618-5988 for additional assistance. It is strongly recommended that firms register well in advance of the proposal due date, so that there is ample time to resolve potential registration issues that may arise.

The signature of the Offeror provided in Box 17 of the SF33 agrees, if this offer is accepted within 180 calendar days from the date of receipt of offers specified as the due date in Box 9 of the SF33 or any extended due date, to furnish any or all items upon which the prices are offered at the price set opposite each item, delivered at the designated point(s), within the time specified in the schedule.

Proposals must be received within the PIEE Solicitation Module no later than the date and time identified in block 9 on the SF33.

L2 PRE-AWARD INQUIRIES/REQUESTS FOR PROPOSALS (RFP) INFORMATION/CLARIFICATIONS /QUESTIONS

All questions must be submitted via one document, Attachment J-4, Pre-award Inquiry Form, by email to Star Hanchey, star.m.hanchey.civ@us.navy.mil, no later than 2:00 p.m., Norfolk Local Time, 08 October 2025. The Government will not accept pre-proposal inquiries submitted after 2:00 p.m., Norfolk Local Time, on 08 October 2025.

The Government has no obligation to respond to pre-proposal inquiries. As such, submission of pre-proposal inquiries as outlined in section L.2 does not guarantee that the Government will respond to the inquiries.

Contractors are required to review the entire solicitation package before submitting questions. Contractors should ensure that all pre-proposal inquiries are necessary for proposal development in accordance with the solicitation.

L3 RFP FILES

Solicitations are posted to the Opportunities (<https://www.sam.gov>) website. By necessity, these files are protected to prevent unauthorized editing. It is the sole responsibility of the Offeror to obtain the RFP files, along with any amendments, from the Opportunities Website.

L4 GENERAL PROPOSAL REQUIREMENTS

The price proposal and non-price proposals shall be submitted in separate files to the Solicitation Module in PIEE named as "Volume 1: Price Proposal" and "Volume 2: Non-price Proposal" as described below.

Elaborate brochures or other presentations beyond that sufficient to present a complete and effective proposal are not desired. Elaborate artwork and expensive visual or other presentation aids are not necessary. Organization, clarity, accuracy of information, relevance, and completeness are of prime importance.

The signature of the Offeror provided in Box 17 of the SF33 agrees, if this offer is accepted within 180 calendar days from the date of receipt of offers specified as the due date in Box 9 of the SF33 or any extended due date, to furnish any or all items upon which the prices are offered at the price set opposite each item, delivered at the designated point(s), within the time specified in the schedule.

L5 EVALUATION FACTORS FOR AWARD

1. The solicitation requires the evaluation of price and the following non-price factors:

Factor 1 - Corporate Experience

Factor 2 - Technical Approach / Management Approach

Factor 3 - Safety

Factor 4 - Past Performance

The distinction between experience and past performance is that experience pertains to the volume of work completed by a contractor that are comparable to the types of work described under the definition of recent, relevant projects, in terms of size, scope, and complexity. Past performance pertains to both the relevance of recent efforts and how well a contractor has performed on the contracts.

2. The relative order of importance of the non-price evaluation factors is the technical factors (Factors, 1, 2, and 3) are of equal importance to each other and, when combined are equal in importance to the past performance evaluation /performance confidence assessment factor (Factor 4). When the proposal is evaluated as a whole, the technical factors and past performance/performance confidence assessment factor combined (i.e., the non-price evaluation factors) are significantly more important than price.

The importance of price will increase if the Offerors' non-price proposals are considered essentially equal in terms of overall quality, or if price is so high as to significantly diminish the value of a non-price proposal's superiority to the Government. Award will be made to the responsible Offeror(s) whose offer conforms to the solicitation and represents the best value to the Government, price and non-price factors considered.

Submittal Requirements for Each Factor.

Volume I -- Price Proposal:

Solicitation Submittal Requirements: Submit one (1) electronic copy of the price proposal via the Procurement Integrated Enterprise Environment (PIEE) Solicitation Module. The price proposal electronic copies shall be submitted to the "Volume I: Price Proposal" within the PIEE Solicitation Module Offer Template Tab. The price proposal electronic copies shall be submitted in Adobe Portable Document Format (PDF) and Microsoft (MS) Excel format and shall be Microsoft Office Version 2016 compatible with a font no smaller than 11 point. Price proposals shall include a separate tab for each item specified below.

Tab A. Identify the Company profile, to include the Offeror's name, address, names of two (2) points of contact (including title, phone number and email address), the UEI number and CAGE code;

Tab B. Completed and signed Standard Form 33 (SF-33);

Tab C. Acknowledgement of all issued solicitation amendment(s) (SF-30's) related to this Solicitation;

offer be considered for award. In order to be eligible for award, your company must be determined responsible in accordance with FAR Part 9, specifically 9.104-1, General Standards.

- a. Provide the latest three (3) complete fiscal year financial statements for the prime contractor, certified by an independent accounting firm, if practicable, or at least by an authorized officer of the organization. Submit evidence of availability of working/operating capital, which will be used for the performance of the resultant contract. For Joint Venture Offerors, submit the latest three (3) complete fiscal year financial statements for each member of the Joint Venture and discuss the financial responsibilities among the companies. The Government may also utilize Dun & Bradstreet reports to evaluate the financial capacity of the offeror.
- b. Provide one (1) signed Bank Reference demonstrating adequate financial resources. If your company has a line of credit, provide information on how many figures can your company borrow against the line of credit (i.e. "medium 6 figures,"-exact line of credit is not required). For Joint Venture Offeror, a signed Bank Reference shall be provided for each member company. Provide three (3) signed credit references. Credit references must verify that your company pays its creditors timely and in accordance with the terms negotiated with the creditor. For Joint Venture Offerors, three (3) signed credit references shall be provided for each member company.

Tab J. Antimafia Screening

1. The United States is committed to ensuring that all Government contracts with performance in Italy remain free from infiltration or other influence by the Mafia. To that end, and in accordance with Italian Legislative Decree 159/2011 as amended, all offerors shall submit with their proposals a completed self-certification known as the "Comunicazione Antimafia" or "Informazione Antimafia" depending on the value of the contract. For contracts valued at less than the applicable European Community monetary threshold for defense contracts, contractors shall submit a completed "Comunicazione Antimafia" self-certification form. *See Attachment J-7.* The applicable threshold for construction contracts for 2025 is 5,382,000, and the applicable threshold for supply and service contracts is 431,000. For contracts valued at more than the applicable European Community monetary threshold for defense contracts, contractors shall submit a completed "Informazione Antimafia" self-certification form. *See Attachment J-8.*
2. In addition, prior to submitting a proposal, all offerors shall initiate registration on the "White List" with the Prefect (Prefetto) where their company is legally registered. The offeror shall submit proof with its proposal that it has initiated or accomplished the "White List" registration procedures. For non-Italian offerors who do not have a registered office in Italy, the offeror shall initiate registration on the "White List" with the Prefect (Prefetto) where the work will be performed.
3. The contractor is subject to Anti-Mafia screening prior to award and throughout the life of the contract. In the event that, prior to award, the Government discovers any Mafia-related indications or infiltration with respect to the offeror, the offeror will be considered nonresponsible and will not be eligible for award.
4. Further, if during the life of this contract, the Government learns of any Mafia-related indications or infiltration against the contractor, the Government will consider this to be a failure to execute the work and may terminate the contract under the "Default" clause of the contract.
5. The contractor shall ensure that these Anti-Mafia provisions are included in any subcontracts and that the same Anti-Mafia provisions applicable to the prime contractor apply to its subcontractors. If during the life of this contract, the Government learns of any Mafia-related indications or infiltration against any subcontractor at any tier, the contractor

agrees, if requested by the Government, to promptly terminate the subject subcontract and replace the Mafia-colluded subcontractor at its own cost with a compliant company.

Tab K. Please submit the below information, on your firm's official letterhead, with your price proposal in a SEPARATE SEALED envelope, labeled "TAB K", and marked as "CONTROLLED UNCLASSIFIED INFORMATION".

The letter shall contain the following:

Controlled By: U.S. NAVY

Controlled By: [Company Name]

CUI Category: OPSEC / PRIVACY

Limited Dissemination Control: FEDCON

POC: [Company - Facility Security Officer (Name/phone #)]

A statement regarding your firm's possession of a Secret Facility Clearance, your firm's CAGE Code information, and your firm's Facility Address. This information is required to confirm your firm's ability to meet the required Facility Clearance and Safeguarding capability for work under this contract.

This data is NOT to be included on the electronic copies you will provide via a non-rewritable CD. Although this information is required to be submitted with your firm's price proposal, this information will not be evaluated as part of the price proposal. This information allows the verification of your firm's possession of the required security clearances. In order to be eligible for contract award, your firm must possess a Secret Facility Clearance.

***NOTES:**

i. Pricing data (Attachment J-3 - Section B, Supplies or Services and Prices and Attachment J-0200000-12 Exhibit Line Item Numbers (ELINs) pricing) shall be submitted electronically. Attachment J-0200000-12 shall be submitted in Excel format (Microsoft Office Version 2016 compatible) and PDF format, and Attachment J-3 shall be submitted in PDF format. Failure to do so may be cause to eliminate the proposal from the competition without further evaluation.

ii. ELIN unit prices **must be rounded to two (2) decimal places only**, and each ELIN extended total price must be calculated based on the rounded unit price. If an offeror does not round ELIN unit prices to two (2) decimal places, then the Government will round the prices to two (2) decimal places, and the resulting rounded prices will be used for evaluation purposes.

iii. All ELIN unit prices must be no less than \$0.01, unless offering "\$0.00". If an offeror proposes a unit price less than \$0.01 but higher than "\$0.00", then the Government will round the unit price to \$0.01 and that rounded price and resultant extended total price will be used for evaluation purposes.

iv. In the event there is a difference between a unit price and the extended total amount, the unit price will be held to be the intended offer and the extended total of the CLIN and ELIN will be recomputed to take into account the change in the contract CLIN/ELINS. If the offeror provides a total amount for an ELIN but fails to enter the unit price, the extended total amount divided by the ELIN quantity will be held to be the intended unit price, although if this calculation results in a unit price requiring more than two decimal places, the unit price will be rounded to two decimal places and the extended total price will be recalculated in accordance with the preceding paragraph.

v. Prices provided shall be fully loaded and no other allocations, fees, overheads, G&A, insurance, taxes, profits or any other markups shall be applied when an option is exercised, or a Task Order is issued.

vi. Costs for Annex 0100000 and Annex 0200000 shall be considered overhead; therefore, those costs shall be allocated and included throughout the prices proposed for all other annexes.

vii. Offerors are not to include additional informational data or narratives as part of their price proposal to demonstrate how their price proposals were developed. Offerors shall only provide the Solicitation Submittal requirements listed within the above Tabs (Tabs A through I) for Volume 1: Price Proposal. Any information provided above and beyond the submittal requirements will not be evaluated.

Volume II -- Non-Price Proposal:

Non-Price Submittal Requirements: Submit one (1) electronic copy of the non-price proposal via the Procurement Integrated Enterprise Environment (PIEE) Solicitation Module. The non-price proposal electronic copies shall be submitted to the "Volume II: Non-Price Proposal" within the PIEE Solicitation Module Offer Template Tab. The non-price proposal electronic copies shall be submitted in Adobe Portable Document Format (PDF). The non-price proposal shall not exceed forty (40) single-sided or twenty (20) double-sided pages with a font no smaller than 11 point. Pages exceeding this page limitation will not be evaluated.

Note: The page limit count does not include the following: Blank tab dividers, cover pages, Tab A and B documents (including commitment letters from team members/subcontractors or Joint Venture agreements), Past Performance Questionnaires (PPQs), or CPARS.

Non-price proposals shall include a separate tab for each item specified below.

Tab A. - Offerors shall include a cover page that provides: name and address of the prime contractor, UEI number, CAGE Code and the name, title, email, and phone number of two (2) authorized representatives.

Tab B. - Any offeror proposing as a partnership, joint venture, other teaming arrangement, or that is relying on resources of a parent company/subsidiary/affiliate shall submit the following information:

- i. Provide a listing of each entity within a "contractor team arrangement" (as defined in FAR 9.601) and each corporate affiliate, parent, or subsidiary upon whose resources the offeror is proposing to rely upon (hereinafter Corporate Affiliate) for this contract (collectively, each "Team Member"), including each entity's full corporate name (no abbreviations), address, point of contact, phone number, UEI Number, and CAGE Code. This includes information for any "Team Member" that the Offeror is utilizing to demonstrate corporate experience.
- ii. For Team Members that are proposed subcontractors, submit a signed letter of commitment from each subcontractor Team Member. **The commitment letter shall clearly identify the expected relationship, role, and responsibility of the Team Member. NOTE:** General statements of availability, or other descriptions of involvement that do not demonstrate how the Corporate Affiliate will actually participate in contract performance, may not suffice. Failure to submit this documentation may prevent the Government from considering a subcontractor Team Member's experience. The letter must demonstrate how the subcontractor Team Member will be meaningfully involved in the performance of this contract, including description of specific commitment of resources (e.g., personnel, equipment, etc.).
- iii. For Team Members that are Corporate Affiliates, submit a narrative (one for each Corporate Affiliate) that clearly demonstrates how the Corporate Affiliate will have meaningful involvement in the performance of this contract. In order to enable an assessment of meaningful involvement, the narrative shall state the Corporate Affiliate's specific commitment of technical resources (e.g., personnel, equipment, etc.) that will be provided for contract performance, and shall describe specific aspects of the project that the Corporate Affiliate will self-perform or manage on behalf of the Offeror in performance of the contract. Failure to submit this documentation may prevent the Government from considering a Corporate Affiliate's experience.
- iv. If proposing as a Joint Venture, provide the full name (no abbreviations), UEI Number and CAGE Code for the JV itself, as well as for each JV member, and a copy of the signed Joint Venture Agreement.

Tab C. - Factors:

(Tab 1) **Factor 1, Corporate Experience:**

Solicitation Submittal Requirements: The Offeror shall submit a minimum of two (2) and a maximum of four (4) relevant projects using Attachment J-2 - Corporate Experience Project Data Sheet. **The Offeror shall not submit any other information under Factor 1 unless it is on Attachment J-2.** Each project shall be clearly presented and must meet ALL criteria below to be considered "relevant":

(a) Facility Investment (1502000): Each project shall demonstrate experience performing services comparable to technical specification 1502000, including, at a minimum: Completion of Service Orders, Preventative Maintenance, Integrated Maintenance Program repairs.

(b) Additional Technical Services: Each project shall include services comparable to at least two (2) additional technical specifications to be preformed under this contract.

Note: Technical specification 0100000 General Information, 0200000 Management and Administration, 1503050 Grounds Maintenance and Landscaping, 1503060 Pavement Clearance, and 1700000 Transportation will not be considered or counted towards the minimum of two (2) additional technical specifications required to demonstrate a relevant project under corporate experience.

(c) Performance Period and Value: Each project shall demonstrate at least one (1) year of performance and annually invoicing of \$5 million or greater within the last eight (8) years from the date proposals are due.

Note: If proposals are due on December 16, 2025, the project must demonstrate one full year of performance between December 16, 2017, and December 16, 2025, invoiced at \$5 million or more.

Further, the Offeror's collective set of submitted projects shall also aggregately demonstrate experience performing services comparable to EACH of the following:

1. Performance of services comparable to technical specification 1503010 - Custodial on at least one (1) recent and relevant project; and
2. Performance of services comparable to technical specification 1503030 - Integrated Solid Waste Management on at least one (1) recent and relevant project; and
3. Performance of services comparable to technical specification 1604000 - Wastewater on at least one (1) recent and relevant project.

Aggregate Requirements may be satisfied by a single relevant project that includes all three (3) specifications, or multiple relevant projects, each demonstrating one or more of the specifications.

The Offeror shall complete Attachment J-2 - Corporate Experience Project Data Sheet for each project. All information shall be provided as requested on the form. Attachment J-2 may be expanded and is not limited to the two (2) pages provided with the solicitation; however, it is subject to the overall Volume II page count.

Instructions on **Attachment J-2 - Corporate Experience Project Data Sheet:**

1. Box 1 must identify either the Offeror or an entity that will be involved in the performance of this contract (the requirements/services described in the solicitation to be performed upon award).
2. Box 2 must provide the percent of project work performed by the entity in Box 1.
3. Box 9 must describe the services performed by the entity in Box 1.

4. If the entity in Box 1 is not the Offeror, then the form must include an explanation as to how that entity will have meaningful involvement in the performance of this contract or, if that entity is a subcontractor, refer to a signed commitment letter from a subcontractor submitted under Volume II, Tab B.

5. If the entity in Box 1 is a JV, and not all members from that JV are on proposing for this contract, the Offeror shall clearly demonstrate what portion of the work on the submitted project was performed by the entity(ies) proposed to work on this contract.

6. If performance was by a predecessor to the entity in Box 1, the form must describe how the entity in Box 1 received & retained the resources and personnel associated with the experience performed by the predecessor.

IMPORTANT: It is the Offeror's responsibility to clearly explain and demonstrate to the Government how each project submitted is relevant to the contract requirement in this Solicitation. If the Offeror does not clearly explain how its claimed experience is comparable to the contract requirements in this Solicitation, the Government may determine that the submitted contract experience is not relevant. **NOTE:** This includes Corporate Affiliates, see above.

If the Offeror is a Joint Venture (JV), recent and relevant experience should be submitted for projects completed by the JV entity. If the JV members have not previously performed together, then experience must include at least one (1) relevant project demonstrating performance by at least one JV member. The requirement for one (1) relevant project demonstrating performance by at least one JV member cannot be met by relying on experience of a Corporate Affiliate of a JV member. JV Offerors who demonstrate relevant experience by all JV members, whether performing together or separately, may be considered more favorably than JV offerors who only demonstrate relevant experience by a single member. JV Offerors are still limited to a total of four (4) recent and relevant projects.

If a project was performed by a JV, and not all members from that JV are on the JV proposed for this contract, the Offeror shall clearly demonstrate on the Attachment J-2 - Corporate Experience Project Data Sheet what portion of the work on the submitted project was performed by the entity(ies) proposed to work on this contract and **shall not include work performed by the JV as a whole**. If the Offeror does not specifically address what portion of the work under the submitted project was performed by the entity(ies) proposed to work on this contract, or if the work performed by the entity (ies) is deemed to not be relevant to this contract, the project may not be considered relevant.

(Tab 2) **Factor 2, Technical Approach / Management Approach**

Solicitation Submittal Requirements: The Offeror shall clearly demonstrate its understanding of current industry standards, policies, procedures, and processes utilized in accomplishing the size, scope, and complexity of service requirements set forth in the performance objectives and standards of the Performance Work Statement for each of the technical specifications listed below. The Offeror shall separately address each of the following technical specifications:

- a) **1502000 Facility Investment** - Provide a narrative explaining your proposed staffing level regarding labor hours for this annex and your technical approach to ensuring the reliability and continuous operation of systems maintained under the Preventive Maintenance (PM) Program and Integrated Maintenance Program (IMP). Discuss your understanding of Service Orders, Limits of Liability, how you intend to manage workflow, outline the equipment procurement plan, and describe how you will ensure that the Joint Commission Standards are met, including documentation to be provided/maintained.
- b) **1503010 Custodial** - Provide a narrative explaining your proposed staffing level regarding labor hours for this annex and your technical approach to ensuring the reliability and continuous operations of custodial services. Discuss how you intend to manage workflow and how you will ensure cleaning schedules will be met. Additionally, describe how you will ensure that the Joint Commission Standards are met, including documentation required to be provided/maintained
- c) **1503030 Integrated Solid Waste Management (ISWM)** - Provide a narrative explaining your proposed staffing level regarding labor hours for this annex and your technical approach to ensuring the reliability and continuous operations of ISWM services.
- d) **1604000 Wastewater** - Provide a narrative explaining your proposed staffing level in terms of labor hours for this annex and your technical approach to ensuring the reliability and continuous operations of wastewater services. Provide a critical spare parts plan addressing your approach to maintaining critical spare parts and the

management and financial responsibilities pertaining to the procurement of initial and replacement critical spare parts.

(Tab 3) **Factor 3, Safety**

Solicitation Submittal Requirements: The Offeror shall submit the following information:

The Days Away from Work, Restricted Duty, or Job Transfer (DART) Rate; and Total Case Rate (TCR) for the specified five (5) Calendar Years (CY), as well as a safety narrative, as described further below. For a partnership or joint venture, the Offeror shall submit separate DART rates and TCR for the specified five (5) CY for each contractor who is part of the partnership/joint venture; however, only one safety narrative is required. Any fatalities experienced within this 5-year timeframe must be explained in detail, to include root cause and corrective actions.

NOTE: DART and TCR shall not be submitted for subcontractors.

1. DART Rate: Submit five (5) previous complete calendar years' [CY2024, CY2023, CY2022, CY2021, and CY2020] worth of data (not an overall average). If the Offeror has no DART rate, for any year, affirmatively state so and explain why. Should a negative trend occur above moderate risk levels, an acceptable/detailed explanation is required that includes any corrective actions taken for improvement.

a. DART cases include injuries or illnesses resulting in death, days away from work, and/or restricted work or transfer to another job days beyond the day of injury/illness.

b. Calculation of DART rate: Multiply the total number of DART cases by 200,000 and then divide by the number of employee labor hours worked.

2. TCR Rate: Submit five (5) previous complete calendar years' [CY2024, CY2023, CY2022, CY2021, and CY2020] worth of data (not an overall average). If the Offeror has no TCR rate, for any year, affirmatively state so and explain why. Should a negative trend occur above moderate risk levels, an acceptable/detailed explanation is required that includes any corrective actions taken for improvement.

a. TCR cases include injuries or illnesses resulting in death, days away from work, restricted work or transfer to another job days beyond the day of injury/illness, medical treatment beyond first aid, or loss of consciousness.

b. Calculation of TCR rate: Multiply the total number of TCR incidents by 200,000 and then divide by the number of employee labor hours worked.

3. Technical Approach to Safety: Submit a narrative that addresses the following:

a. Describe the Offeror's approach to implementing and executing a Safety Management System (SMS) including Management/Leadership involvement, Employee involvement, Hazard prevention, Hazard control, Worksite analysis, and Safety and health training, and identify the specific standard(s) used to benchmark the SMS.

b. Describe the evaluation process used to select potential subcontractors.

c. Describe the processes of how the Offeror will oversee safety compliance of subcontractors at all levels throughout performance of the contract (to include the Offeror's own in-house workforce).

d. The Technical Approach to Safety narrative shall be limited to two (2) single-sided pages or one (1) double-sided page.

4. The Government reserves the right to review other available sources (public/Government internal) of information. These may include but are not limited to OSHA data, NAVFAC's Contractor Incident Reporting System (CIRS), Contractor Performance Assessment Reporting System (CPARS), Electronic Contract Management System (eCMS), etc.

(Tab 4) Factor 4, Past Performance**Solicitation Submittal Requirements:**

Submit a completed CPARS evaluation for each project submitted under Factor 1, Corporate Experience. IF A COMPLETED CPARS EVALUATION IS AVAILABLE, IT SHALL BE SUBMITTED WITH THE PROPOSAL. IF THERE IS NOT A COMPLETED CPARS EVALUATION, the Past Performance Questionnaire (PPQ) included in the solicitation is provided for the offeror or its team members to submit to the client for each project the offeror includes in its proposal for Factor 1. AN OFFEROR SHALL NOT SUBMIT A PPQ WHEN A COMPLETED CPARS IS AVAILABLE.

IF A CPARS EVALUATION IS NOT AVAILABLE, ensure correct phone numbers and email addresses are provided for the client point of contact. Completed PPQs should be submitted with your proposal. If the offeror is unable to obtain a completed PPQ from a client for a contract action(s) before proposal closing date, the offeror should complete and submit with the proposal the first page of the PPQ (Attachment J-1), which will provide contract and client information for the respective contract(s). Offerors should follow-up with clients/references to ensure timely submittal of questionnaires. If the client requests, questionnaires may be submitted directly to the Government's point of contract, Star Hanchey via email at star.m.hanchey.civ@us.navy.mil prior to proposal closing date. Offerors shall not incorporate by reference into their proposal PPQs or CPARS previously submitted for other RFPs. However, this does not preclude the Government from utilizing previously submitted PPQ information in the past performance evaluation.

The past performance information requested in Factor 4 must be for the same contracts the offeror submitted for Corporate Experience under Factor 1.

Offerors may provide any information on problems encountered and the corrective actions taken on CPARS and /or PPQs submitted. Offerors may also address any adverse past performance issues. Such explanations shall not exceed two (2) double-sided pages (or four (4) single-sided pages) in total.

In addition to the above, the Government may review any other sources of information for evaluating past performance. Other sources may include, but are not limited to, past performance information retrieved through the Contractor Performance Assessment Reporting System (CPARS) using all CAGE/Entity Identifier numbers of Team Members identified in the offeror's proposal, inquiries of owner representative(s), Federal Awardee Performance and Integrity Information System (FAPIIS), Electronic Subcontract Reporting System (eSRS), and any other known sources not provided by the offeror.

While the Government may elect to consider data from other sources, the burden of providing detailed, current, accurate, and complete past performance information rests with the Offeror.

A copy of the blank Past Performance Questionnaire to be used for requesting client references is included as Attachment J-1.

The Government will not review or consider certificates of appreciation or other performance recognition documents.

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.204-7	System for Award Management.	Nov 2024		
52.204-16	Commercial and Government Entity Code Reporting.	Aug 2020		
52.204-22	Alternative Line Item Proposal.	Jan 2017		
52.214-34	Submission of Offers in the English Language.	Apr 1991		
52.214-35	Submission of Offers in U.S. Currency.	Apr 1991		
52.215-1	Instructions to Offerors-Competitive Acquisition.	Nov 2021		
52.222-46	Evaluation of Compensation for Professional Employees.	Feb 1993		
52.222-56	Certification Regarding Trafficking in Persons Compliance Plan.	Oct 2020		
52.232-15	Progress Payments Not Included.	Apr 1984		
52.237-1	Site Visit.	Apr 1984		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.204-7019	Notice of NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	Mar 2023		
252.215-7013	Supplies and Services Provided by Nontraditional Defense Contractors.	Jan 2023		
252.215-7016	Notification to Offerors-Postaward Debriefings.	Dec 2022		
252.225-7003	Report of Intended Performance Outside the United States	Jan 2025		

FAR Clauses Incorporated by Full Text

52.216-1 Type of Contract. (Apr 1984)

Type of Contract (Apr 1984)

The Government contemplates award of a **firm-fixed price indefinite delivery/indefinite quantity type** contract resulting from this solicitation.

(End of provision)

52.233-2 Service of Protest. (Sep 2006)

Service of Protest (Sept 2006)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from _____.

Ed Flint
NAVFAC Atlantic, CON36
5605 Hampton Blvd, Building A
Norfolk, VA 23508-1278
edward.d.flint.civ@us.navy.mil (email)

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of provision)

52.252-1 Solicitation Provisions Incorporated by Reference. (Feb 1998)

Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

FAR: <https://www.acquisition.gov/browsefar>
DFARS: <https://www.acq.osd.mil/dpap/dars/dfarspgi/current>
NMCARS: <http://www.secnav.navy.mil/rda/Pages/NMCARS.aspx>

(End of provision)

52.252-5 Authorized Deviations in Provisions. (Nov 2020)

Authorized Deviations in Provisions (Nov 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any **Defense Federal Acquisition Regulation Supplement** (48 CFR Chapter 3) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

DFARS Clauses Incorporated by Full Text**252.215-7008 Only One Offer.****(Dec 2022)****ONLY ONE OFFER (DEC 2022)**

(a) *Cost or pricing data requirements.* After initial submission of offers, if the Contracting Officer notifies the Offeror that only one offer was received, the Offeror agrees to-

(1) Submit any additional cost or pricing data that is required in order to determine whether the price is fair and reasonable (10 U.S.C. 3705) or to comply with the statutory requirement for certified cost or pricing data (10 U.S.C. 3702 and FAR 15.403-3); and

(2) Except as provided in paragraph (b) of this provision, if the acquisition exceeds the certified cost or pricing data threshold and an exception to the requirement for certified cost or pricing data at FAR 15.403-1(b)(2) through (5) does not apply, certify all cost or pricing data in accordance with paragraph (c) of DFARS provision 252.215-7010, Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data, of this solicitation.

(b) *Canadian Commercial Corporation.* If the Offeror is the Canadian Commercial Corporation, certified cost or pricing data are not required. If the Contracting Officer notifies the Canadian Commercial Corporation that additional data other than certified cost or pricing data are required in accordance with DFARS 225.870-4(c), the Canadian Commercial Corporation shall obtain and provide the following:

(1) Profit rate or fee (as applicable).

(2) Analysis provided by Public Works and Government Services Canada to the Canadian Commercial Corporation to determine a fair and reasonable price (comparable to the analysis required at FAR 15.404-1).

(3) Data other than certified cost or pricing data necessary to permit a determination by the U.S. Contracting Officer that the proposed price is fair and reasonable ____ [*U.S. Contracting Officer to provide description of the data required in accordance with FAR 15.403-3(a)(1) with the notification*].

(4) As specified in FAR 15.403-3(a)(4), an offeror who does not comply with a requirement to submit data that the U.S. Contracting Officer has deemed necessary to determine price reasonableness or cost realism is ineligible for award unless the head of the contracting activity determines that it is in the best interest of the Government to make the award to that offeror.

(c) *Subcontracts.* Unless the Offeror is the Canadian Commercial Corporation, the Offeror shall insert the substance of this provision, including this paragraph (c), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

(End of provision)

Section M - Evaluation Factors for Award

M1 BASIS FOR AWARD

- 1) The Government reserves the right to eliminate from consideration for award any or all offers at any time prior to award of the contract; to negotiate with offerors in the competitive range; and to award the contract to the offeror submitting the proposal determined to represent the best value--the proposal most advantageous to the Government, price and other factors considered.
- 2) The Government intends to evaluate proposals and award a contract without discussions with offerors (except clarifications as described in FAR 15.306(a)). The Government reserves the right to conduct discussions if the Contracting Officer later determines them to be necessary. In addition, if the Contracting Officer determines that the number of proposals that would otherwise be in the competitive range exceeds the number at which an efficient competition can be conducted, the Contracting Officer may limit the number of proposals in the competitive range to the greatest number that will permit an efficient competition among the most highly rated proposals.
- 3) The tradeoff process is selected as appropriate for this acquisition. The Government considers it to be in its best interest to allow consideration of award to other than the lowest priced offeror or other than the highest technically rated offeror.
- 4) All technical factors when combined are of equal importance to the performance confidence assessment (past performance) rating; and all technical factors and the performance confidence assessment (past performance) rating, when combined are significantly more important than price.
- 5) Any proposal found to have a deficiency in meeting the stated solicitation requirements or performance objectives will be considered ineligible for award, unless the deficiency is corrected through discussions. An Unacceptable rating in any of the non-price factors will result in an overall rating of "Unacceptable" for the non-price factors, unless corrected through discussions. Proposals may be found to have either a significant weakness or multiple weaknesses that impact either the individual factor rating or the overall rating for the proposal.

M2 EVALUATION FACTORS

VOLUME I PRICE PROPOSAL

Basis of Evaluation: The Government will evaluate price based on the total price. Total price consists of the basic requirements and all option items (see Section B of the Solicitation). The Government will evaluate all options and has included the provision FAR 52.217-5, Evaluation of Options (JUL 1990) in Section M of the Solicitation. In accordance with FAR 52.217-5, evaluation of options will not obligate the Government to exercise the option(s). Analysis will be performed by one or more of the following techniques to ensure a fair and reasonable price:

- (i) Comparison of proposed prices received in response to the RFP.
- (ii) Comparison of proposed prices with the IGCE.
- (iii) Comparison of proposed prices with available historical information.
- (iv) Comparison of market survey results.
- (v) Fair and reasonable CLIN and ELIN/unit pricing.

An evaluation and written determination concerning whether unbalanced pricing exists will be conducted in accordance with FAR 15.404-1(g). If unbalanced pricing exists, the Government will consider the risks of that unbalanced pricing in making the source selection decision.

VOLUME II NON-PRICE PROPOSAL

(TAB 1) Factor 1 - CORPORATE EXPERIENCE

Basis of Evaluation: The Government will evaluate the extent to which the Offeror demonstrates experience in performing relevant projects of similar size, scope and complexity to this requirement. The assessment of the Offeror's relevant experience will be used as a means of evaluating the capability of the Offeror to successfully meet the requirements of the Solicitation. The minimum standard for Corporate Experience has been met when the Offeror has demonstrated experience in performing relevant projects that collectively meet all Aggregate Requirements defined in the Solicitation Submittal Requirements (Section L, Volume II, Tab C (Factor 1)).

The Government will consider the depth and breadth of the relevant experience, focusing on demonstrated experience in technical specifications to be performed under this contract, to evaluate the level of risk of unsuccessful performance. The Government will review only four (4) projects. Any projects submitted in excess of the four (4) projects limit will not be considered. The Government will only evaluate the first four (4) projects based on the order in which they appear in the proposal.

Projects performed by the Offeror with experience performing work OCONUS, may be considered more favorably than Offerors without such experience.

Relevant experience performed by the Offeror as the prime contractor may be considered more favorable. Relevant experience performed by Corporate Affiliate(s), or by proposed subcontractor(s) may not be considered as favorably as experience performed by the offering entity. IMPORTANT: If the Offeror uses a proposed subcontractor(s) or Corporate Affiliate(s) to demonstrate corporate experience, the Offeror must provide all documentation and information requested in Tab B to enable a finding that the entity will be meaningfully involved in performance of this contract. Failure to provide adequate information may prevent the Government from being able to credit the Offeror with performance of the subcontractor or Corporate Affiliate. Offerors are still limited to a total of four (4) recent and relevant projects.

Projects submitted by Joint Ventures, where the Joint Venture members performed together (either as partners or in a prime-subcontractor relationship) may be considered more favorably than projects submitted in which the Joint Venture members did not perform together.

Proposals demonstrating experience self-performing relevant features of work may be considered more favorably than those that do not demonstrate self-performance.

(TAB 2) Factor 2 - TECHNICAL APPROACH/MANAGEMENT APPROACH

Basis of Evaluation: The Government will evaluate the extent to which the offeror's approach demonstrates adequate staffing for each of the annexes mentioned above and demonstrates a reasonable understanding of the requirements and labor quantities and skills needed to successfully perform. Offerors who propose staffing without a logical explanation of how it will be able to perform at its proposed staffing level may be rated less favorably or found unacceptable, depending on the risk assessment.

Please note: Statements such as "will comply", or "noted and understood", without supporting narrative to define compliance are not acceptable. Cursory responses or responses which merely reiterate or reformulate solicitation language may not be considered as satisfying the requirement of the Solicitation or as demonstrating the ability to perform, and therefore may be found unacceptable, depending on the risk assessment.

(TAB 3) Factor 3 - SAFETY

Basis of Evaluation: The Government is seeking to determine that the Offeror has consistently demonstrated a commitment to safety and that the Offeror plans to properly manage and implement safety procedures for itself and its subcontractors. The evaluation will collectively consider the DART rate, TCR, Technical Approach to Safety, and other sources of information available to the Government as part of such collective evaluation. The board will evaluate the DART rates and TCR to determine if the Offeror has demonstrated a history of safe work practices taking into account any negative trends and extenuating circumstances that impact the rating.

1. DART Rate: The board will evaluate trends over the last five years considering changes that take it from one risk level (or more) to the next up or down. Negative trends occurring above moderate risk levels require the offeror to provide a detailed explanation that includes any corrective actions taken for improvement.

- a. Missing data without an explanation is considered a deficiency.
- b. Declining trends that push the risk levels from Moderate Risk (MR) or higher to Low Risk (LR) or Very Low Risk (VLR) would indicate a strength.
- c. An increasing DART rate trend could be considered a weakness (i.e. MR or better to High Risk (HR) or Extremely High Risk EHR)) if an acceptable explanation is not provided for any trends that rise above Moderate.
- d. This chart correlates the DART rate to the level of risk:

Risk	DART Rate
Very Low Risk	Less Than 1.0
Low Risk	From 1.0 to 1.99
Moderate Risk	From 2.0 to 2.99
High Risk	From 3.0 to 4.0
Extremely High risk	Greater than 4.0

2. TCR Rate: The board will evaluate trends over the last five years considering changes that take it from one risk level (or more) to the next up or down. Negative trends occurring above moderate risk levels require the offeror to provide a detailed explanation that includes any corrective actions taken for improvement.

- a. Missing data without an explanation is considered a deficiency.
- b. Declining trends that push the risk levels from Moderate Risk (MR) or higher to Low Risk (LR) or Very Low Risk (VLR) would indicate a strength.
- c. An increasing TCR rate trend could be considered a weakness (i.e. MR or better to High Risk (HR) or Extremely High Risk EHR)) if an acceptable explanation is not provided for any trends that rise above Moderate.
- d. This chart correlates the TCR rate to the level of risk:

Risk	TCR Rate
Very Low Risk	Less Than 2.49
Low Risk	From 2.5 to 3.49
Moderate Risk	From 3.5 to 4.49
High Risk	From 4.5 to 5.99
Extremely High Risk	Greater than 6.0

3. The Technical Approach to Safety Narrative. To determine the degree to which the Offeror:

- a. Describes a viable SMS that addresses elements, such as Management/Leadership involvement, Employee involvement, Hazard prevention, Hazard control, Worksite analysis, and Safety and health training, to include identifying the specific standard(s) used to benchmark the SMS.

- b. Describes a methodical process of evaluating subcontractor's safety performance in their selection process.
- c. Describes a logical management plan to hold themselves and their subcontractors accountable for adhering to the safety requirements of the contract.
- d. The Technical Approach to Safety narrative shall be limited to two (2) single-sided pages or one (1) double-sided page. Information on pages beyond this will not be considered.

4. The Government reserves the right to review other available sources (public/Government internal) of information. These may include but are not limited to OSHA data, NAVFAC's Contractor Incident Reporting System (CIRS), Contractor Performance Assessment Reporting System (CPARS), Electronic Contract Management System (eCMS), etc.

(Tab 4) **Factor 4, Past Performance**

Basis of Evaluation:

The Government will evaluate how well the Offeror performed on the relevant contracts submitted under Factor 1, Corporate Experience, and may evaluate other contracts documented in known sources. The Government will consider the recency and degree of similarity between the project and the subject contract, using the parameters established in Factor 1.

In addition to the above, the Government may review any other sources of information for evaluating past performance. Other sources may include, but are not limited to, past performance information retrieved through the Contractor Performance Assessment Reporting System (CPARS) using all CAGE/Entity Identifier numbers of team members (partnership, joint venture, teaming arrangement, or parent company/subsidiary/affiliate) identified in the offeror's proposal, inquiries of owner representative(s), Federal Awardee Performance and Integrity Information System (FAPIS), Electronic Subcontract Reporting System (eSRS), and any other known sources not provided by the offeror. While the Government may elect to consider data from other sources, the burden of providing detailed, current, accurate and complete past performance information rests with the Offeror.

The Government will also evaluate the degree to which past performance evaluations and all other past performance information reviewed by the Government (e.g. CPARS, FAPIS, eSRS, or information obtained from any other source) reflect a trend of satisfactory performance considering:

- A pattern of successful completion of tasks;
- A pattern of deliverables that are timely and of good quality;
- A pattern of cooperativeness and teamwork with the Government at all levels (task managers, contracting officers, auditors, etc.); and
- Recency of tasks performed that are identical to, similar to, or related to the task at hand.

In the case of offerors without a record of relevant past performance or for whom information on past performance is not available or so sparse that no meaningful past performance rating can be reasonably assigned, the Offeror may not be evaluated favorably or unfavorably on past performance (see FAR 15.305(a)(2)(iv)) and will receive a Neutral Confidence Rating.

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/Deviation	Variation Effective Date
52.217-5	Evaluation of Options.	Jul 1990		